UPSC CSE Mains 2027 · GS Paper II

# POLITY

Constitutionalism · Rule of law · Separation of powers · Constitutional morality · Living Constitution · Union and its territory · Fundamental Rights: Art 12 · Reservation · Art 19 · Media · Art 20-22 · Art 21 · Exploitation · Religion · Secularism · Minorities · Waqf · DPSP · UCC · Fundamental Duties

Handwritten-style notes

Built from the Sarrthi IAS GS-2 Polity handouts: Introduction to Constitution, Union and Its Territory; Fundamental Rights; Fundamental Rights 2; DPSP and Fundamental Duties.
Bracket trees · mnemonics · PYQ tags · current affairs
Right column and left binding margin are kept blank for your own use.

Personal study edition · for printing

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# CONSTITUTIONALISM · RULE OF LAW

PYQ None quoted in the handout · Polity handout pp. 3–4

✎ *Constitutionalism means a government whose powers are limited by a supreme law. Rule of Law (Dicey) is one tool for that. Know the meaning, the six features, negative vs positive constitutionalism, why codification alone is not enough, Dicey's three principles and the exceptions to equality.*

## CONSTITUTIONALISM: MEANING AND FEATURES

**Meaning and concept**

→ ***powers of the government are not absolute***; they are limited by a body of laws or a supreme law called the ***Constitution***

→ government must subscribe to this body of laws as ***its legitimacy depends on it***; hence constitutionalism ***abhors absolutism***

→ tools to limit government: ***Dicey's Rule of Law*** and ***Separation of Powers***

**Features of constitutionalism**

→ ***Rule of Law***

→ ***Separation of Powers***

→ ***basic civil liberties*** and protection of people's rights

→ ***Democracy:*** temporariness of government through periodic free and fair elections

→ ***Independent Judiciary***

→ ***Free Media***

**DR FISC** — Six features: **D**emocracy (periodic elections) · **R**ule of law · **F**ree media · **I**ndependent judiciary · **S**eparation of powers · **C**ivil liberties. (own mnemonic)

**Negative constitutionalism (prevent tyranny)**

→ idea that the ***State can be a danger or source of oppression*** gained ground in the late medieval and early modern age

→ developed largely among ***Western thinkers*** to ***prevent tyranny by limiting the powers of the government*** after oppression by the ruling class

**Positive constitutionalism**

→ zeal for limiting power may ***hinder the State from performing basic functions*** (e.g. public order), leading to ***anarchy***; so the State must be empowered

→ government ***must have certain powers to perform its functions properly***

→ balances power to prevent ***tyranny (excess power and abuse)*** and ***anarchy (inadequate power)***

**TA** — Positive constitutionalism balances **T**yranny (too much power) against **A**narchy (too little). (own mnemonic)

→ these principles are ***assimilated into the Indian Constitution to varying degrees***

**Constitutionalism beyond the written Constitution**

→ ***mere codification is not a sufficient condition***: principles must be ***implemented and observable to citizens in daily life***

→ ***United Kingdom:*** no single codified Constitution, yet constitutionalism exists

→ so the presence or absence of codification ***does not guarantee*** the presence or absence of constitutionalism

## RULE OF LAW

**Meaning and concept**

→ many have contributed, but ***A. V. Dicey***'s contribution is the most seminal

→ basically the ***supremacy of law over arbitrary power***: government power exercised according to law, and the law itself consistent with constitutional principles

**Dicey's principles**

→ ***Supremacy of law:*** rule by ***principles of law, not whims and fancies of the ruler***, and the ruler is also subject to law. SC: ***however high a person may be, the law is above them***

→ ***Equality before law:*** all sections of society equally subject to the law of the land. Affirmative action and positive discrimination depart from strict ***formal equality*** but promote ***substantive equality***

→ ***Equality of law administered through ordinary courts:*** today many forums have adjudicatory functions, e.g. quasi-judicial ***CAT, ITAT*** and other tribunals

***SEE*** — Dicey: **S**upremacy of law · **E**quality before law · **E**qual administration through ordinary courts. (own mnemonic)

## EXCEPTIONS TO LEGAL EQUALITY

**President and Governors: Article 361**

→ while in office, ***no criminal proceedings*** can be instituted or continued against them

→ ***no civil proceedings*** for acts in personal capacity during tenure unless ***two months' prior notice*** is given

→ ***no arrest or imprisonment*** process from any court during the term of office

→ a departure from strict formal equality

**A. G. Noorani's criticism**

→ termed the criminal exemption a ***mindless borrowing from the West***, based on British practice where courts cannot prosecute the ruler

→ in Britain courts are historically tied to the authority of the Crown and the ***sovereign enjoys constitutional immunity***; in India both the President and the courts are ***creations of the Constitution***, so similar provisions are questionable

→ can be abused: ***politicians facing criminal prosecution can be appointed Governors***

→ if introduced today through a constitutional amendment, it would ***not get the approval of the public or the courts***

**Other exceptions**

→ ***diplomatic immunity***

→ ***parliamentary privileges: Article 105(2):*** an MP is not liable to any court proceedings for ***anything said or any vote given in Parliament or any committee***; protection for speech inside the House, an exception even to defamation law

***DPP*** — Exceptions to equality: **D**iplomats · **P**arliamentarians (Art 105(2)) · **P**resident and Governors (Art 361). (own mnemonic)

## Recall drill: cover and answer

| | | | |
|---|---|---|---|
| Constitutionalism in one line | powers of government limited by a supreme law | Six features | DR FISC |
| Negative constitutionalism | prevent tyranny by limiting power | Positive constitutionalism | balance tyranny and anarchy; State must have powers |
| Is codification enough? | No; UK has none yet has constitutionalism | Dicey's three principles | supremacy of law, equality before law, ordinary courts |
| President/Governor immunity | Article 361; civil notice of two months | MP speech immunity | Article 105(2) |
| Who called Art 361 mindless borrowing | A. G. Noorani | | |

# ⚖ SEPARATION OF POWERS · CHECKS AND BALANCES ⚖

PYQ None quoted in the handout · Polity handout pp. 5–8

✎ *Power should not sit in one institution, so it is split into law-making, law execution and law adjudication. Perfect separation is impossible; India follows a middle path with checks and balances. Know the overlaps, why strictness fails, each check, and the India / USA / UK comparison.*

## MEANING, FUNCTIONS, BENEFITS

**Separation of Powers**

→ power of government should ***not be concentrated in one institution but divided among them***

→ traditionally ***legislative, executive and judicial/adjudicatory***; in medieval times kings held all, leading to ***absolutism***

→ ***Montesquieu***'s name is indelibly associated with the concept

→ functions: ***law-making*** (legislative) · ***law execution*** (executive) · ***law adjudication*** (judicial)

**Benefits**

→ ***preserves democracy and rights*** of the people

→ healthy ***division of labour, specialisation and efficiency***

→ ***healthy debate and constructive friction***, so deliberation leads to better outcomes

## FUNCTIONAL OVERLAP AMONG ORGANS

***Even in the USA***, the traditional home of rigid separation, there is dilution. ***Perfect separation is not possible in a modern State*** and is not followed anywhere in the world.

**Westminster system**

→ in a ***parliamentary system*** separation between legislature and executive is never complete

→ executive = ***permanent bureaucracy*** plus the ***Council of Ministers headed by the PM*** (political executive), who are generally MPs, so a minister is part of ***both*** legislature and executive

→ ***Article 75(5)***: a non-MP can become a minister but must become a member of either House within ***six consecutive months***

→ in the ***USA*** a person cannot be in the Presidential Cabinet and Congress at once: ***the biggest qualification to be a minister in India is a disqualification in the USA***

**Delegated legislation**

→ law passed in a ***broad skeletal form***; detailed ***rules, regulations and bye-laws*** are framed by the executive

| | |
|---|---|
| | → law-making is delegated to the executive, a ***subordinate legislature*** |
| ***Administrative adjudication*** | → adjudication is traditionally a judicial function, but here the ***executive carries it out***: e.g. ***district administration (revenue courts)***, tribunals like ***CAT and ITAT***<br>→ technical matters of adjudication are better handled this way |
| ***Judge-made laws*** | → where law is ***silent or ambiguous*** the court clarifies it by interpretation: a ***law-making*** function<br>→ where there is a ***legal vacuum*** the court gives guidelines that function as law, e.g. ***Vishakha Guidelines*** |
| ***Ordinances*** | → urgent need for a law and ***Parliament not in session***: the President can promulgate ***Ordinances under Article 123***<br>→ function as laws passed by Parliament, subject to constitutional requirements |
| ***Regulatory bodies*** | → emerged worldwide due to the ***complex modern economy***<br>→ law-making, implementation and adjudication all vested in them: ***make rules, regulate the sector, penalise defaulters***; e.g. ***SEBI, IRDAI*** |
| ***MPLADS and Article 372*** | → ***MPLADS:*** an MP's main job is legislating, but here MPs ***identify local needs and recommend works***, a developmental (executive) function; ***overlap of legislative representation and executive functions***, though sanction and implementation stay with administrative authorities<br>→ ***Article 372:*** pre-Constitution laws could be aligned with the Constitution; this power was with the ***President for the first three years***, so the executive performed ***legislative functions*** |

**MAJOR WAD** — Eight overlaps: **M**PLADS · **A**rt 372 · **J**udge-made law · **O**rdinances · **R**egulators · **W**estminster (minister is MP) · **A**dministrative adjudication · **D**elegated legislation. (own mnemonic)

## LIMITS OF STRICT SEPARATION

| | |
|---|---|
| ***Why rigid separation is not maintainable*** | → ***specialisation:*** traditional organs cannot handle all complex functions of modern administration<br>→ ***speed and efficiency:*** if all tribunal cases went to the judiciary it would be overwhelmed and could not perform its primary functions<br>→ ***public interest: power is not a property but a means to an end***; if the end (serving people, their welfare) is better served by vesting power in an institution not meant to exercise it, ***so be it*** |

**SSP** — Limits of strict separation: **S**pecialisation · **S**peed · **P**ublic interest. (own mnemonic)

## SYSTEM OF CHECKS AND BALANCES

India does ***not follow strict, rigid separation*** as in the USA but a ***system of checks and balances*** (term borrowed from the USA): functions are divided among branches and ***each acts as a check on the others*** to prevent abuse of power.

| | |
|---|---|
| ***Executive checks the judiciary: appointment of judges*** | → on paper the executive has a role (President appoints), but in India the process has come to be ***substantially controlled by the judiciary through the Collegium System***<br>→ ***USA:*** President nominates, subject to ***Senate confirmation***<br>→ executive participation helps ensure ***competent judges of integrity*** |
| | → ***Article 124(4):*** SC judge removed by the ***President*** after an ***address by each House***, supported by a majority of the total membership and ***not less than two-thirds of members present and voting***; a corresponding process for High Court judges |

**Legislature checks the judiciary: removal of judges**

→ so difficult that ***not one HC or SC judge has been removed*** through it to date

**Judiciary checks the executive and legislature**

→ strikes down ***unconstitutional laws*** and ***illegal or unconstitutional executive action***

→ power to determine legality and constitutionality = ***Judicial Review***

**Legislature checks the executive**

→ laws need ***enactment by the legislature***

→ questions the executive via ***Question Hour, resolutions and debates***

→ extreme case: ***No-Confidence Motion*** against the Council of Ministers in the Lok Sabha

**Executive checks the judiciary: clemency**

→ power to ***grant clemency*** for punishments after judicial proceedings: ***President (Art 72)*** and ***Governors (Art 161)***

→ a distinct constitutional power, ***not an ordinary appeal***; meant for ***human errors and unduly harsh punishments***

**CRJ-NQ** — Checks in action: **C**ollegium / appointment · **R**emoval Art 124(4) · **J**udicial review · **N**o-confidence · **Q**uestion Hour · clemency (Art 72, 161). (own mnemonic)

## SEPARATION OF POWERS: INDIA, USA, UK

| Country | Position (handout) |
|---|---|
| India | if the offices of ***both President and Vice-President*** are vacant, the ***CJI discharges the President's functions*** under the ***President (Discharge of Functions) Act, 1969*** |
| USA | no such arrangement: ***more rigid*** separation than India |
| UK | ***looser*** separation than the USA; highest appellate judicial function used to sit in Parliament (***House of Lords***), changed by the ***UK Supreme Court in 2009*** |

***India follows a middle path*** between the rigid USA and the looser UK.

## NEED FOR GREATER CHECKS ON THE EXECUTIVE

**Why**

→ historically ***more power gets vested in the executive***

→ if ***judicial independence is compromised*** and the ***opposition is fragmented***, executive rule goes unchecked

→ so a ***proactive legislature, discussion and an independent judiciary*** are needed, but in contemporary times both are ***less effective***

→ ***less discussion on Bills in Parliament***; separation exists on paper but may be weakened ***in a substantive sense***

**Institutional checks on executive power**

→ ***CAG, ECI, UPSC and CVC*** enjoy varying degrees of institutional independence

→ ***CAG, ECI and UPSC are constitutional bodies; CVC is a statutory body***

→ so there is no ***unbridled exercise of power*** by the political executive

**CECU** — Institutional checks: **C**AG · **E**CI · **C**VC (statutory) · **U**PSC. (The first, second and fourth are constitutional.) (own mnemonic)

## Recall drill: cover and answer

| | | | |
|---|---|---|---|
| Who is linked to Separation of Powers | Montesquieu | Three state functions | law-making, execution, adjudication |
| Art 75(5) time limit | six consecutive months | Ordinance power | Article 123, when Parliament not in session |
| Judge removal provision | Art 124(4); special majority; none removed so far | Clemency articles | Art 72 President; Art 161 Governor |
| Who acts if President and VP posts vacant | CJI, under the 1969 Act | Which is more rigid: India or USA | USA |
| Constitutional vs statutory checks | CAG, ECI, UPSC constitutional; CVC statutory | | |

# ⚖ CRITICAL APPRAISAL OF THE CONSTITUTION · AMBEDKAR'S WARNINGS ⚖

PYQ None quoted in the handout · Polity handout pp. 8–10

✎ *The handout lists five criticisms of the Constitution (borrowed, verbose, bulky, un-Gandhian, inconsistent) and the reply to each. Ambedkar's warnings at the close of the Constituent Assembly are the value-addition.*

## CRITICISMS AND REPLIES

**Charge 1: un-Indian and borrowed**

→ alleged ***slavish imitation of the West*** and a ***carbon copy of the GoI Act, 1935***

→ British frameworks came through laws of ***1861, 1892, 1909, 1919 and 1935***; large parts borrowed from the ***1935 Act***

**Reply**

→ all provisions were ***debated in the Constituent Assembly*** before adoption: structure was adopted, ***the soul was debated***

→ framed on ***secular democracy***; after many constitutions existed, it would be ***foolish not to look at others***; ideas are ***not the copyright of any country***

→ ***intelligent adaptation, not blind copying***: US ***Bill of Rights vs Part III***

→ ***Granville Austin:*** calling it un-Indian was absurd as ***what constitutes Indianness is not defined***

**Charge 2: complicated, verbose language**

→ the Assembly was full of ***legal experts***; it is a ***legal document***, so legal jargon is expected

→ ***Ivor Jennings:*** a ***"lawyer's paradise"***

**Charge 3: too voluminous, and the defence**

→ the effort tried to bring ***under one fold the accumulated experience*** of many constitutions

→ deals with ***details of administration***: accounts, audit, public services, elections, languages

→ ***single Constitution for the whole country*** (the US is smaller as states have their own)

→ ***diversity***: special provisions for states, minorities, backward classes; ***Centre-State relations in detail***

→ detail leaves ***minimal ambiguity*** and helps avoid litigation; the ***GoI Act, 1935*** was itself bulky

**DISCO** — Why bulky: **D**iversity · **I**nstitutional details of administration · **S**ingle Constitution for all · **C**entre-State detail · **O**ne-fold borrowing (1935 Act) and no ambiguity. (own mnemonic)

***Charge 4: Ungandhian Constitution***

→ allegation that ***Gandhi's ideology is not adequately reflected***; Congress strategy in the struggle was Gandhian, but post-Independence economy and polity took a different approach (***Gandhi's cottage industries vs Nehru's industrialisation***)

→ ***oceanic circles of power:*** power should radiate ***from the village to the Centre, not the reverse***

→ not enforceable: village panchayats went into ***Directive Principles, Article 40*** (non-justiciable)

→ ***Ambedkar*** saw villages as ***dens of darkness*** (casteism, patriarchy, feudalism); local democracy would represent ***local elites***

→ later local self-government got constitutional status via the ***73rd and 74th Amendments***

***Charge 5: lack of theoretical consistency***

→ India has many ***contradictions***, so the Constitution reflects them

→ provisions of ***modernity (liberty, equality, fraternity)*** and tradition (debates on ***UCC, divorce, adoption***)

→ India is a ***blend of modernity and tradition***; the ***incoherence in society*** gets reflected in the Constitution

**BVBUC** — Five charges: **B**orrowed · **V**erbose · **B**ulky · **U**ngandhian · **C**ontradictory (inconsistent). (own mnemonic)

## AMBEDKAR'S WARNINGS AT THE INAUGURATION

***Three warnings plus one need***

→ ***constitutional methods:*** mass protests mattered when ***exploited under British rule*** but not after Independence; use constitutional methods to redress grievances and prevent the ***grammar of anarchy***

→ ***no hero worship in politics:*** do not raise leaders to ***divine status***

→ ***political vs socio-economic equality:*** "***entering an era of contradictions***": ***one person, one vote, one value*** in politics, but inequality continues in socio-economic life; so ***political democracy should be used to alleviate socio-economic inequalities***

→ ***need to cultivate constitutional values:*** constitutionalism and constitutional morality must be nurtured in generations to come

**CHE** — Ambedkar's warnings: **C**onstitutional methods · **H**ero worship no · **E**quality contradiction (+ cultivate morality). (own mnemonic)

## Recall drill: cover and answer

| | | | |
|---|---|---|---|
| Who called it a lawyer's paradise | Ivor Jennings | Who said un-Indian charge was absurd | Granville Austin |
| Gandhian ideas in the Constitution | village panchayats in DPSP Art 40; later 73rd, 74th Amendments | Gandhi's oceanic circles | power from village to Centre |
| Ambedkar on villages | dens of darkness | Ambedkar: grammar of anarchy | give up mass protest, use constitutional methods |
| Ambedkar on hero worship | no hero worship in politics | Era of contradictions | one vote one value vs socio-economic inequality |

# ⚖ CONSTITUTIONALISM IN PRACTICE · INTERPRETATION · CONVENTIONS ⚖

PYQ None quoted in the handout · Polity handout pp. 10-12

✎ *Writing principles down is not enough; political, administrative and social culture decide whether constitutionalism lives. Courts also interpret the Constitution through definitions and several methods, and conventions give it flesh and blood.*

## CONSTITUTIONALISM IN PRACTICE

**Three cultures decide it**

→ ***political culture:*** parties nurture democracy, but often show ***undemocratic culture: family fiefdoms, high-command culture, less scope for dissent, nomination of criminals, vindictive politics after coming to power***; the very institutions meant to preserve constitutionalism undermine it

→ ***administrative culture:*** civil servants must see themselves as ***servants of the people***

→ ***social value system: high tolerance of unethical practices***; e.g. little public outrage at ***extrajudicial police encounter killings***

**PAS** — Three cultures: **P**olitical · **A**dministrative · **S**ocial value system. (own mnemonic)

## CONSTITUTIONAL INTERPRETATION

**Need and aids**

→ the Constitution must be ***applied correctly***; it is interconnected and must be read in light of its ***overall philosophy and objectives***

→ ***Article 366*** defines many terms (e.g. SCs, STs); ***Article 12*** defines the State

→ ***General Clauses Act, 1897*** (list of legal terms) is applied through ***Article 367***

**Methods the Supreme Court has given**

→ ***ordinary meaning of English words:*** commonly used meanings unless the context demands otherwise

→ ***preamble:*** provisions amplify the philosophy summarised in the Preamble; of multiple interpretations the one that ***best fits the Preamble's philosophy*** is correct

→ ***progressive interpretation:*** norms change, so read provisions with ***changing social norms*** and emerging conditions; e.g. ***Article 21*** from restrictive to expansive meaning of life, giving shelter to many rights

→ ***purposive interpretation:*** uses the ***purpose or intent*** (Constituent Assembly Debates); read in light of the ***entire Constitution, an ecosystem in itself***, and all parts read together

→ ***harmonious construction:*** where one provision conflicts with another, ***reconcile them and give maximum possible effect***

→ ***liberal interpretation:*** provisions on ***liberty and security of citizens*** interpreted in their favour; e.g. ***privacy, freedom of the press, RTI*** through ***Articles 19 and 21***

**OPPHL** — Methods: **O**rdinary meaning · **P**reamble · **P**rogressive · **P**urposive · **H**armonious · **L**iberal. (own mnemonic)

## ROLE OF CONVENTIONS

**Conventions**

→ tools used by the judiciary to interpret the Constitution; some conventions of the ***English parliamentary system*** are used by courts

→ the ***US Constitution originally had seven Articles***, supplemented by conventions and practices

→ uncodified but carry ***legitimacy backed by public opinion and political practice***, not necessarily legally enforceable

→ let the Constitution ***adapt without amendment***; courts use them to interpret it; they provide ***flesh and blood to the dry bones of law***

## Recall drill: cover and answer

| | | | |
|---|---|---|---|
| Three cultures | political, administrative, social value system | Article 366 defines | terms like SC and ST |
| Article 12 defines | the State | General Clauses Act year and link | 1897; via Article 367 |
| Six methods of interpretation | OPPHL | Harmonious construction | reconcile conflicting provisions, maximum effect |
| Liberal interpretation e.g. | privacy, press freedom, RTI via Arts 19, 21 | Conventions give | flesh and blood to the dry bones of law |

# CONSTITUTIONAL MORALITY

***PYQ None quoted in the handout · Polity handout pp. 12–13 · current affairs: verify dates***

✎ *Constitutional morality is deep commitment to constitutional values even when popular sentiment opposes them. Know Ambedkar's idea, how it differs from public morality, the Navtej and Sabarimala judgments, and the debate on whether courts should use it.*

## MEANING AND AMBEDKAR'S IDEA

***Constitutional morality*** is a ***deep commitment to the values of the Constitution***: liberty, equality, fraternity, justice and dignity, ***even when popular sentiment runs against them***.

**Dr. B. R. Ambedkar's conception**

→ meant ***accepting plural opinions, rejecting coercion, keeping the executive answerable to elected representatives***, and ensuring ***no single person or institution claims absolute authority***

→ ***not a natural sentiment in India***; it had to be cultivated

→ a Constitution can be ***silently subverted*** not by changing its text but by ***distorting how it is administered***

→ courts have built on this: ***protecting minority rights, limiting majoritarianism, keeping all branches in check***

| ***Public morality*** | ***Constitutional morality*** |
|---|---|
| rooted in ***majority beliefs, traditions, customs*** | rooted in ***constitutional principles*** (liberty, equality, fraternity, justice) |
| can be ***majoritarian, regressive, discriminatory*** | ***inclusive, rights-based, progressive*** |
| ***subordinate*** when in conflict | ***prevails*** when in conflict |

**Significance**

→ ***protects individual and minority rights*** from majority pressure

→ ***check on the highest functionaries***: ministers, judges, citizens

→ keeps the ***spirit of the Constitution alive*** beyond its text

→ gives courts a tool to ***interpret rights expansively***

**PCKI** — Significance: **P**rotects minorities · **C**hecks the high · **K**eeps the spirit alive · **I**nterprets rights expansively. (own mnemonic)

## JUDICIAL APPLICATION

**Landmark judgments**

→ ***Navtej Singh Johar v. Union of India (2018)***: SC ***decriminalised consensual same-sex relations between adults*** (Section 377 IPC)

→ ***Indian Young Lawyers Association v. State of Kerala (2018)***: the ***Sabarimala*** judgment on women's entry into the temple

→ in both, ***constitutional morality must prevail over public or social morality*** when they conflict with constitutional rights and values

## THE DEBATE

**Criticism**

→ ***April 2026***: SG ***Tushar Mehta*** in the Sabarimala review argued it should be discarded as a ground of judicial review: "***vague and subjective***", absent from the text, letting courts strike down actions without clear basis

→ ***2018, K. K. Venugopal*** (then AG): "***very dangerous***", could make the SC a ***third chamber of Parliament***

**Counter view: Upendra Baxi**

→ not a judicial invention: embedded in the ***Preamble, Part III and Part IVA***

→ three ideas: ***equality, liberty, fraternity*** · ***respect for diversity*** · ***Constitution in letter and spirit***

→ protects the ***vulnerable when majority opinion is hostile***; vagueness is inherent in all principles and courts use it through ***reasoned judgments***

***Recent (verify)***: a nine-judge Constitution Bench ***reserved judgment*** on the Sabarimala reference on ***14 May 2026***. Handout view: it is a ***shared responsibility of legislature, executive and judiciary***; discarding it would leave the constitutional spirit vulnerable to the majoritarianism it was designed to check.

## Recall drill: cover and answer

| | | | |
|---|---|---|---|
| Constitutional morality means | deep commitment to constitutional values even against popular sentiment | Ambedkar: not natural, must be | cultivated |
| Silent subversion happens by | distorting how the Constitution is administered | Navtej Johar 2018 | decriminalised consensual same-sex relations (Sec 377) |
| Sabarimala case 2018 | Indian Young Lawyers Association v. State of Kerala | Who called it vague and subjective | Tushar Mehta (SG, April 2026) |
| Who said very dangerous | K. K. Venugopal (2018) | Baxi: embedded in | Preamble, Part III, Part IVA |

# ⚖ THE CONSTITUTION AS A LIVING DOCUMENT · ARTICLE 21 ⚖

PYQ None quoted in the handout · Polity handout pp. 13–15 · 2025 case: verify

✎ *A living constitution evolves without losing its core identity. Know the seven features that make ours living, five reasons it must be, and the five-stage journey of Article 21 from Gopalan to digital access.*

## CONCEPT AND FEATURES

The Indian Constitution is ***not a frozen text***; it is a ***living instrument with capabilities of enormous dynamism***. A living constitution ***evolves with time without losing its core identity***: an ongoing project responding to social, economic and political realities.

**What makes it living**

→ ***Article 368:*** amendment power; over a hundred amendments since 1950

→ ***amendment procedures: simple majority, special majority, special majority with State ratification***: flexible yet stable; simple-majority changes are made ***outside Article 368***

→ ***Basic Structure Doctrine: Kesavananda Bharati v. State of Kerala (1973)*** keeps amendments within limits

→ ***Judicial Review:*** supported by ***Articles 13, 32, 136 and 226*** (32 and 226 writ jurisdiction; 136 special leave to appeal)

→ ***open-textured language:*** esp. ***Articles 14, 19, 21***

→ ***Directive Principles:*** guideposts to gradually realise socio-economic goals

→ ***constitutional conventions*** develop over time

**ABJODDC** — Seven features: **A**rt 368 · **B**asic structure · **J**udicial review · **O**pen texture · **D**PSP · **D**ifferent amendment procedures · **C**onventions. (own mnemonic)

**Why it is necessary for India**

→ ***social:*** gender equality, ***LGBTQ rights***, dismantling caste hierarchies

→ ***economic: 1991 liberalisation, privatisation, globalisation*** forced reinterpretation of socialist provisions

→ ***technological:*** internet, mobile, data, AI, digital identity raise questions on privacy, speech, surveillance

→ ***federal evolution:*** coalition politics, ***cooperative and competitive federalism***

→ ***global engagement:*** treaties, climate agreements, human rights covenants

**SETFG** — Five drivers: **S**ocial · **E**conomic · **T**echnological · **F**ederal · **G**lobal. (own mnemonic)

***Limit:*** living does ***not*** mean it can mean anything anyone wants. It is bound by the ***values of the Preamble, the limits of the Basic Structure and the discipline of constitutional methods.***

# ARTICLE 21: THE LIVING CONSTITUTION IN ACTION

**1950**
**A. K. Gopalan:** narrow reading; restrictive ***personal liberty***; rights as separate compartments; "***procedure established by law***" without fairness test

**1978**
***Maneka Gandhi:*** progressive view; procedure must be ***fair, just and reasonable***; opened a ***whole new world of rights***

**PILs**
unstated rights read into Art 21 (see list below)

**2017**
***Puttaswamy:*** ***nine-judge*** bench, unanimous: ***privacy intrinsic to life and liberty*** (physical, informational, decisional); ***overruled ADM Jabalpur (1976)***

**Now**
dignity in death, partner choice, transgender rights, personality rights, digital access

***Rights read into Article 21 (Stage 3)***

→ ***livelihood:*** Olga Tellis (1985)
→ ***free legal aid:*** Hussainara Khatoon (1979)
→ ***clean environment:*** M. C. Mehta cases
→ ***education:*** led to ***Article 21A*** by the ***86th Amendment, 2002***
→ ***health:*** Paschim Banga Khet Mazdoor Samity
→ ***shelter:*** Chameli Singh
→ ***speedy trial*** and protection against ***custodial violence***

***L-FEEHSS*** — Stage-3 rights: **L**ivelihood (Olga Tellis) · **F**ree legal aid (Hussainara) · **E**nvironment (M. C. Mehta) · **E**ducation (21A) · **H**ealth (Paschim Banga) · **S**helter (Chameli Singh) · **S**peedy trial. (own mnemonic)

***Stage 5: continuing expansion***

→ ***right to die with dignity*** (passive euthanasia); ***right to choose a partner***; ***rights of transgender persons***; ***personality rights*** (e.g. Jackie Shroff case)
→ ***right to digital access:*** Pragya Prasun v. Union of India (2025): an ***intrinsic component of the right to life and liberty under Article 21*** (verify)

## AMBEDKAR'S INSIGHT

The Constitution is ***not a mere lawyer's document but a vehicle of life, and its spirit is the spirit of the age.*** "***However good a Constitution may be, if those who are implementing it are bad, it will prove to be bad. However bad a Constitution may be, if those implementing it are good, it will prove to be good.***" It lives only when ***institutions and citizens give it life in every generation.***

## Recall drill: cover and answer

| | | | |
|---|---|---|---|
| Living constitution | evolves without losing core identity | Limits on "living" | Preamble values, Basic Structure, constitutional methods |
| Basic structure case | Kesavananda Bharati (1973) | Judicial review articles | 13, 32, 136, 226 |
| Gopalan 1950 vs Maneka 1978 | narrow vs fair, just, reasonable procedure | Puttaswamy 2017 | nine judges; privacy; overruled ADM Jabalpur |
| Livelihood / legal aid cases | Olga Tellis / Hussainara Khatoon | Art 21A inserted by | 86th Amendment, 2002 |
| Digital access case | Pragya Prasun v. Union of India (2025) | | |

# UNION AND ITS TERRITORY · LINGUISTIC STATES · SMALL STATES · SECOND SRC

PYQ None quoted in the handout · Polity handout pp. 15–17

✎ *After 1947 language became the main basis for redrawing states. Know the arguments for and against, the three committees, Andhra and the 1956 Act, then the small-states debate, the Uttar Pradesh case and the case for a Second SRC.*

## LINGUISTIC REORGANISATION OF STATES

After Independence ***language became the main basis*** for reorganising states, replacing the colonial emphasis on ***administrative convenience***. ***1920s:*** Congress accepted it in principle (***Gandhi reorganised Pradesh Congress Committees*** on linguistic lines)

**Against**

→ ***administrative difficulties*** from numerous linguistic demands
→ ***national integration:*** strong linguistic identities weaken common identity
→ ***secessionism:*** linguistic nationalism may encourage separatism
→ ***regionalism:*** demands for ***jobs, subsidies, benefits*** raise regional hostility

**In favour**

→ ***administrative efficiency:*** governance in the people's language
→ ***education and culture:*** mother-tongue education
→ ***democratic participation:*** easier engagement
→ ***secular basis:*** alternative to ***religion and caste*** in drawing boundaries

**AINR vs AEDS** — Against: **A**dministration · **I**ntegration · **N**o secession · **R**egionalism. For: **A**dministration · **E**ducation · **D**emocratic participation · **S**ecular basis. (own mnemonic)

| Committee / Commission | Major recommendations |
|---|---|
| S. K. Dhar Commission (1948) | rejected linguistic reorganisation; favoured ***administrative convenience*** |
| JVP Committee (1948) | ***Nehru, Patel, Pattabhi Sitaramayya*** opposed immediate linguistic reorganisation |
| Fazl Ali Commission (1953) | chair ***Fazl Ali***, with ***K. M. Panikkar and H. N. Kunzru***; rejected ***one state, one language*** |

**DJF** — Order: **D**har (no) → **J**VP (not now) → **F**azl Ali (yes, with limits). (own mnemonic)

**Major developments**

→ ***Andhra State (1953):*** after the death of ***Potti Sreeramulu*** in a hunger strike for a Telugu state; the ***first linguistically reorganised state***
→ ***States Reorganisation Act, 1956: 14 states and 6 Union Territories***

## ISSUE OF SMALL STATES

Demand for smaller states persists due to ***administrative convenience, regional identities and development deficits***. Demands: ***Koshal (Odisha), Kodagu (Karnataka), Vidarbha and Konkan (Maharashtra), Bodoland (Assam), Maru Pradesh (Rajasthan), Mithilanchal (Bihar), Gorkhaland (West Bengal)***.

| | |
|---|---|
| *In favour* | → ***administrative convenience:*** large states have varied terrains and priorities; smaller ones are more homogeneous, so planning is easier<br>→ ***economic growth:*** higher growth in some cases (Punjab, Haryana; Uttarakhand, Jharkhand, Chhattisgarh)<br>→ ***democratic participation:*** capital nearer the people, though not always realised |
| *Issues* | → ***definitional problem:*** what is small or large (population, area, both)?<br>→ ***inter-state disputes:*** borders and water<br>→ ***fragmentation:*** undoing ***Sardar Patel's*** work<br>→ ***no guarantee of human development:*** needs resources, planning, bureaucracy, leadership<br>→ ***financial constraints:*** lower resources, costs of capitals, central dependence<br>→ ***alternative: decentralisation*** via districts, panchayats, urban local bodies |

**AEG vs DIFNFA** — For: **A**dministration · **E**conomy · **G**rassroots democracy. Against: **D**efinition · **I**nter-state disputes · **F**ragmentation · **N**o human-development guarantee · **F**inance · **A**lternative (decentralise). (own mnemonic)

***Democratic decentralisation should be the first line of action***, followed by adequate funds and empowerment with ***functions and functionaries***.

| | |
|---|---|
| *Case of Uttar Pradesh* | → ***Ambedkar*** was wary of one huge state; he proposed ***dividing UP into three states*** for ***administrative convenience, disproportionate influence in national politics and better minority representation***<br>→ recent proposals: ***Harit Pradesh, Awadh, Purvanchal, Bundelkhand***; economic viability questions remain<br>→ ***counter:*** if smaller is the solution, create ***more districts***; empower local bodies first |

## CASE FOR A SECOND SRC

| | |
|---|---|
| *Why* | → ***continuing statehood demands:*** reorganisation is an ***evolving exercise, not one-stop***<br>→ ***changing regional realities:*** three decades of LPG reforms caused ***demographic, economic, social, regional imbalances*** and neglect allegations<br>→ ***growing population*** in certain states<br>→ ***objective decision-making:*** assess on ***administrative convenience, economic viability, development deficits, cultural identity, national unity***, not politics |
| *Way forward* | → ***Second SRC*** with rational, scientific, objective criteria<br>→ ***economic viability*** assessment<br>→ ***democratic decentralisation*** (funds, functions, functionaries)<br>→ ***address development deficits:*** packages, autonomous councils, development boards<br>→ ***statehood as a last resort***, not a panacea |

**SEDAL** — Way forward: **S**econd SRC · **E**conomic viability · **D**ecentralise · **A**ddress deficits · **L**ast resort statehood. (own mnemonic)

## Recall drill: cover and answer

| | | | |
|---|---|---|---|
| Dhar Commission year, view | 1948; against linguistic, for administrative convenience | JVP Committee members | Nehru, Patel, Pattabhi Sitaramayya |
| Fazl Ali Commission members | Fazl Ali, K. M. Panikkar, H. N. Kunzru | First linguistic state | Andhra (1953), after Potti Sreeramulu's death |
| 1956 Act result | 14 states and 6 UTs | Ambedkar on UP | divide into three states |
| First line of action on small states | democratic decentralisation | Second SRC criteria | administrative, economic, development, cultural, national unity |

# DEMAND FOR DELHI STATEHOOD

PYQ None quoted in the handout · Polity handout pp. 17–18 · 2023 Act: verify

✎ *Delhi has an elected government but no control over police, public order and land. Know the constitutional position, the pro and anti arguments, the 2018 and 2023 Supreme Court rulings, the 2023 Act and the way forward.*

## CONSTITUTIONAL POSITION

**Where Delhi stands**

→ national capital, but the elected government lacks full control of ***police, public order and land***

→ ***69th Amendment Act, 1991*** inserted ***Article 239AA***: Legislative Assembly and Council of Ministers

→ designated ***National Capital Territory (NCT)***, administered by a ***Lieutenant Governor*** appointed by the President

→ ***police, public order, land*** are outside the Assembly's competence

→ Parliament retains power to legislate on ***State and Concurrent List*** subjects for Delhi

## ARGUMENTS

**In favour of statehood**

→ ***delay in decision-making:*** Centre handles police, order, land; elected government and LG share some responsibility, so ***fragmented responsibility means fragmented accountability***

→ ***population:*** many full states are smaller than Delhi

→ ***democratic accountability:*** the elected government needs adequate powers; greater autonomy reduces ***LG-government conflict***

**Against statehood**

→ ***national capital:*** sentimental value for all Indians, cannot be the property of one section; houses ***Parliament, the Supreme Court, foreign missions***

→ ***financial viability:*** an ***urban agglomeration***, industry shifting out due to pollution norms; infrastructure needs large resources

→ ***resource dependency:*** relies on neighbouring states for ***water, power, resources***

→ ***population argument limits:*** many cities exceed small states; should they all be states?

**DPD vs NFRP** — For: **D**elay · **P**opulation · **D**emocratic accountability. Against: **N**ational capital · **F**inance · **R**esource dependence · **P**opulation argument stretched. (own mnemonic)

## JUDICIAL AND LEGISLATIVE DEVELOPMENTS

**2018**
***SC judgment:*** stressed ***constitutional morality, representative government and collaborative federalism*** in Delhi's administration

**2023**
***SC judgment:*** the elected Delhi Government has ***legislative and executive powers over services*** except ***police, public order, land***

**2023**
***GNCTD (Amendment) Act, 2023:*** statutory framework under which the ***Union retains significant control over appointments, transfers and postings*** of officers

*Way forward*

→ rather than full statehood, focus on ***institutional clarity***: LG in a ***constitutional/ nominal advisory role*** on non-reserved matters

→ ***greater administrative autonomy*** to the elected government over civic governance and public service delivery, while keeping Union control over ***core strategic functions***

### Recall drill: cover and answer

| | | | |
|---|---|---|---|
| Article for Delhi Assembly | 239AA via 69th Amendment, 1991 | Three subjects outside Delhi Assembly | police, public order, land |
| Who administers Delhi | Lieutenant Governor appointed by the President | 2023 SC ruling | Delhi government controls services except police, public order, land |
| 2023 Act effect | Union keeps control over postings and transfers | Way forward | LG advisory role; more civic autonomy; Union keeps strategic functions |

# LADAKH · STATEHOOD · SIXTH SCHEDULE

*PYQ None quoted in the handout · Polity handout pp. 18–19 · 2025–26 developments: verify*

✎ *Ladakh became a Union Territory without a legislature in 2019. Know its set-up, the grievances, the four-point demand of LAB and KDA, why Sixth Schedule is sought, the Centre's position and a balanced way forward.*

## CONSTITUTIONAL POSITION AND GRIEVANCES

*Position*

→ ***J&K Reorganisation Act, 2019*** made Ladakh a separate ***UT without a legislature*** on ***31 October 2019***

→ ***administration:*** ***Lieutenant Governor*** under ***Article 239***, with ***AGMUT cadre*** officers

→ ***local governance:*** two Hill Councils, ***LAHDC Leh and LAHDC Kargil***, with limited autonomous powers

→ ***judiciary:*** shares the ***High Court of J&K and Ladakh***

→ ***representation:*** ***one Lok Sabha seat***, no Legislative Assembly or Chief Minister

*Major grievances*

→ ***democratic deficit:*** no elected Assembly

→ ***tribal identity:*** fear over ***land, employment, resources***

→ ***ecological vulnerability:*** unregulated ***tourism, mining, infrastructure*** threaten glaciers, water, biodiversity of a fragile high-altitude desert

## FOUR-POINT DEMAND

***Leh Apex Body (LAB)***

→ and ***Kargil Democratic Alliance (KDA)*** demand: ***1)*** full statehood with a Legislative Assembly
→ ***2)*** Sixth Schedule status
→ ***3)*** a separate Public Service Commission
→ ***4)*** two Lok Sabha seats (Leh and Kargil).

**SSPL** — Four demands: **S**tatehood · **S**ixth Schedule · **P**SC of its own · **L**ok Sabha seats (2). (own mnemonic)

***Sixth Schedule demand***

→ ***Article 244(2):*** provides ***Autonomous District and Regional Councils*** with powers over land, forests, customs, local administration in specified ***Northeastern tribal areas***
→ ***NCST recommendation (2019):*** Sixth Schedule protection for Ladakh given its predominantly tribal population
→ ***significance:*** tribal self-government, cultural protection, local control over resources and ecological conservation
→ ***requirement:*** a ***constitutional amendment***, as coverage is limited to specified Northeastern states

## CENTRE'S POSITION AND WAY FORWARD

***Centre's position and developments***

→ ***strategic concerns:*** sensitive borders with ***China and Pakistan***
→ ***alternative safeguards:*** ***Article 371-style*** protections for land, culture, employment discussed
→ ***MHA High-Powered Committee*** to negotiate with Ladakhi representatives
→ ***public mobilisation:*** ***Sonam Wangchuk*** and Ladakhi groups: protests, marches, hunger strikes
→ ***2025:*** domicile, reservation, official language and recruitment safeguards, plus Hill Council provisions; ***2026:*** talks continue with differences over the extent of self-government (verify)

***Way forward***

→ ***democratic representation:*** examine an elected Assembly with national-security safeguards
→ ***constitutional protection:*** Sixth Schedule or Article 371-style
→ ***strengthen Hill Councils*** with ***Funds, Functions and Functionaries (3Fs)***
→ ***local employment:*** recruitment safeguards; separate PSC demand
→ ***sustainable development:*** local say on glaciers, water, fragile ecosystems
→ ***continued dialogue*** with LAB and KDA

**DCSLSC** — Way forward: **D**emocratic representation · **C**onstitutional protection · **S**trengthen Hill Councils (3Fs) · **L**ocal jobs · **S**ustainable development · **C**ontinued dialogue. (own mnemonic)

A lasting solution must balance ***democratic autonomy, tribal identity, ecological protection and national security***.

## Recall drill: cover and answer

| | | | |
|---|---|---|---|
| Ladakh UT date | 31 October 2019, without a legislature | Ladakh administered under | Article 239 by an LG; AGMUT cadre |
| Hill Councils | LAHDC Leh and LAHDC Kargil | Who makes the four demands | LAB and KDA |
| Four demands | statehood, Sixth Schedule, own PSC, two Lok Sabha seats | Sixth Schedule article | Article 244(2) |
| NCST recommendation year | 2019 | 3Fs | funds, functions, functionaries |

# NATURE OF FUNDAMENTAL RIGHTS · ARTICLE 12 · BCCI

PYQ None quoted in the handout · Fundamental Rights handout pp. 4–7

✎ *Fundamental Rights sit in Part III. Most work against the State, so Article 12 defines who the State is. Courts use tests (statute, control, agency, public function) to decide if a body is State. BCCI is the standing example: not State, but still reachable by writ for public duty.*

## WHAT FUNDAMENTAL RIGHTS ARE

**Meaning**

→ ***rights found in Part III*** of the Constitution

→ rights outside Part III are ***not*** Fundamental Rights: the ***Right to Vote***; the statutory ***Right to Information*** (RTI Act, 2005)

→ but the ***right to know and receive information*** is recognised as part of ***Article 19(1)(a)***

| Category | Articles |
|---|---|
| ***Right to Equality*** | Arts ***14–18*** |
| ***Right to Freedom*** | Arts ***19–22*** |
| ***Right against Exploitation*** | Arts ***23–24*** |
| ***Right to Freedom of Religion*** | Arts ***25–28*** |
| ***Cultural and Educational Rights*** | Arts ***29–30*** |
| ***Constitutional Remedies*** | Art ***32*** (Supreme Court); Art ***226*** gives remedies through High Courts |

**EFERCC** — Categories in order: **E**quality (14–18) · **F**reedom (19–22) · **E**xploitation (23–24) · **R**eligion (25–28) · **C**ultural-educational (29–30) · **C**onstitutional remedies (32). (own mnemonic)

## NATURE OF FUNDAMENTAL RIGHTS

**Negative rights**

→ most rights ***stop the State*** from acting, e.g. denying equality

**Positive rights**

→ some ***require the State to act***, e.g. education under ***Art 21A***

**Vertical application**

→ most rights protect ***individuals against the State***

**Horizontal application**

→ some also bind ***private persons***, e.g. ***Art 17*** (untouchability); other violations by private persons are met through civil and criminal law

**Other features**

→ ***Justiciable:*** enforced by courts through ***Art 32*** (SC) and ***Art 226*** (HCs)

→ ***Citizens vs all persons:*** some only for citizens (***Art 19***); others for ***all persons including foreigners*** (***Arts 14 and 21***)

→ ***Not absolute:*** subject to ***reasonable restrictions*** on constitutional grounds

**Emergency and special cases**

→ ***Art 358:*** Art 19 protections are affected during a National Emergency on grounds of ***war or external aggression***

→ ***Art 359:*** President may suspend the ***right to move courts*** for specified rights; ***Arts 20 and 21 enforcement cannot be suspended***

→ ***Art 33:*** Parliament may restrict or remove some rights of ***Armed Forces, public-order forces, intelligence and specified telecom personnel*** for discipline. Example: ***Police Forces (Restriction of Rights) Act, 1966***

**Self-executing vs needing a law**

→ most rights are ***directly enforceable*** without a law

→ some need a law: ***Art 17*** → Protection of Civil Rights Act, 1955 · ***Art 21A*** → RTE Act, 2009 · ***Art 23*** → laws against trafficking and forced labour

→ ***Art 35*** gives ***Parliament*** law-making power to implement specified rights

## ARTICLE 12: DEFINITION OF STATE

Art 12 defines ***State*** for Part III. Since most rights run ***vertically against the State***, we must know who the State is.

**State includes**

→ ***Government and Parliament of India***

→ ***Government and Legislature of each State***

→ ***Local authorities*** (rural and urban)

→ ***Other authorities*** within India or under the control of the Government of India

**Why "other authorities" is the debate**

→ wording is ***vague***; State functions are ***dynamic*** and are increasingly ***outsourced*** to bodies acting on its behalf

→ question: can citizens claim Fundamental Rights against these bodies too? The SC has given ***tests***

**Judicial tests**

→ set up by a ***statute or executive order*** (e.g. RBI)

→ ***substantial financial and administrative control*** by government

→ works as an ***agency or instrumentality*** of the State

→ performs ***sovereign or public functions*** (defence, taxation, law and order)

**SFAP** — Four tests: **S**tatute-created · **F**inancial and administrative control · **A**gency of State · **P**ublic or sovereign function. (own mnemonic)

***Pradeep Kumar Biswas v. IICB (2002)***: the tests are ***not rigid or isolated***. Overall question: is the body ***financially, functionally and administratively dominated or controlled*** by government? Control must be ***deep and pervasive***; ***mere regulatory control is not enough***.

**Is the judiciary "State"?**

→ Art 12 does ***not mention*** the judiciary

→ ***judicial functions:*** courts protect rights; decisions are challenged by ***appeal or review***, not under Art 12

→ ***administrative functions*** (staff recruitment and management): judiciary ***can be treated as State***; such acts can be challenged for violating rights

## CASE STUDY: BCCI

**Facts and Zee Telefilms (2005)**

→ BCCI is a ***private society*** registered under the ***Tamil Nadu Societies Registration Act***, yet has a ***near monopoly*** over Indian cricket and selects the national team

→ ***Zee Telefilms v. Union of India (2005)***: Constitution Bench held BCCI is ***not State***: not created by statute · functions important but ***not sovereign***

→ ***yet*** the Court separated ***being State (Art 12)*** from ***performing a public function***: a public duty can attract ***writ jurisdiction of the High Court under Art 226*** even if the body is not State

| BCCI is State (argument) | BCCI is not State (argument) |
|---|---|
| monopoly control over a national sport | not created by statute |
| public functions affecting careers | no pervasive government control |
| represents India in international bodies | financially independent, mostly private funds |
| decisions affect Fundamental Rights | Ajay Hasia and Pradeep Kumar Biswas tests not fully met |

***Law Commission 275th Report (2018)*** recommended bringing the BCCI under the ***RTI Act*** because of its public functions. The debate is really about fitting the ***modern administrative State*** into Art 12.

***National Sports Governance Act, 2025 (handout; verify details)***

→ ***Presidential assent 18 August 2025***; a statutory framework replacing the non-statutory ***National Sports Development Code, 2011***

→ ***National Sports Board (NSB)*** recognises and regulates National Sports Federations, with power to ***suspend or cancel recognition*** for governance failures

→ ***National Sports Tribunal*** for sports disputes

→ recognised bodies must set up ***Ethics, Dispute Resolution and Athletes Committees*** and codes protecting athletes, especially ***women and minors***

→ aims at ***Olympic and Paralympic Charter*** alignment: India's ***2036 Summer Olympics*** aspiration

***RTI link and concerns***

→ RTI applies if a body is ***substantially financed*** by government, so financially independent BCCI is ***not automatically a public authority***

→ performing public functions ***does not automatically*** make a body ***State (Art 12)*** or a ***public authority (RTI)***

→ concerns: ***over-centralisation*** in the NSB (government role in appointments); conflict of a domestic regulator with the autonomy of ***FIFA and ICC***

## Recall drill: cover and answer

| Where are FRs found | Part III | Right to Vote is a FR? | No, outside Part III |
|---|---|---|---|
| Art 19 vs Art 14, 21 | Art 19 citizens only; 14 and 21 all persons | Cannot be suspended in Emergency | enforcement of Arts 20 and 21 |
| Art 33 | restricts rights of armed and police forces; Act of 1966 | Four tests of State | SFAP |
| Pradeep Kumar Biswas 2002 | deep and pervasive control; tests not rigid | Is judiciary State | only for administrative functions |
| Zee Telefilms 2005 | BCCI not State; public duty reachable under Art 226 | NSGA 2025 assent | 18 August 2025; NSB and National Sports Tribunal |

# ⚖ AFFIRMATIVE ACTION · THE CASE FOR AND AGAINST RESERVATION ⚖

***PYQ None quoted in the handout · Fundamental Rights handout pp. 7–10***

✎ *Affirmative action opens elite positions to groups that were kept out. Ambedkar wanted objective constitutional measures, not waiting for a change of heart. Know the eight arguments for, and the objections with their replies (injustice, merit, caste not class, creamy layer, mismatch).*

## MEANING AND TWO APPROACHES

***Affirmative Action***

→ broader and more refined term than ***reservation***; became prominent when US President ***John F. Kennedy*** used it in an ***executive order in 1961*** for equal opportunity

→ set of ***anti-discriminatory measures*** giving access to ***preferred positions*** (IITs, IIMs, IAS, IPS) to groups who would otherwise be excluded or unrepresented

→ these positions were historically ***monopolised by upper sections*** (gender, caste, class); the State tries to ***alter the social composition of elites***

**Gandhian (spiritual) approach**

→ Ashwini Deshpande calls it the ***Evangelical Approach***

→ ***moral regeneration of upper castes*** through philanthropic upliftment

**Ambedkar's objective approach**

→ ***secular***, not spiritual

→ rejected waiting for a ***change of heart***; we cannot wait years for moral regeneration

→ needs ***objective measures***, e.g. constitutional provisions for ***SCs and STs***

## ARGUMENTS IN FAVOUR

**Eight arguments for**

→ ***Historical injustice:*** compensation for centuries of untouchability and deprivation; USA (racial injustice), Australia (Aboriginal communities)

→ ***Division of labourers, not labour:*** work assigned by ***accident of birth***; link between caste and job weaker among upper castes, but lower castes (Dalits, ***manual scavenging***) still face it

→ ***Class and caste coincide:*** lower castes face ***poverty plus social isolation***; Dalits also face ***landlessness***

→ ***Untouchability persists in new forms:*** separate utensils for domestic help, shoes outside the kitchen, trouble renting a home, honour killings over inter-caste marriage, caste preference in matrimonial ads

→ ***Labour-market dualism:*** Ashwini Deshpande on unequal outcomes. ***Thorat and Attewell (2007):*** applications with Hindu non-Dalit, Hindu Dalit and Muslim identities, ***same qualifications***, different outcomes

→ ***Bridging inequality:*** development alone does not close the gap; affirmative action bridges ***equality in law and equality in fact***

→ ***Benefits society:*** not only the individual; promotes the weakest and allows ***full use of the talent pool***

**HDC-UL-BB** — For: **H**istorical injustice · **D**ivision of labourers · **C**aste-class overlap · **U**ntouchability persists · **L**abour-market dualism · **B**ridging law-fact gap · **B**enefits society. (own mnemonic)

## ARGUMENTS AGAINST AND REPLIES

| Objection | Reply |
|---|---|
| ***Injustice to tackle injustice*** | unequal starting conditions: a weaker-section candidate cannot compete equally with a dominant-section one |
| ***Breeds caste hostility*** | stratification already created caste distinctions; this is ***corrective justice*** |
| ***Compromises merit*** | merit is ***assisted, not inborn***: schooling, family support, absence of discrimination, post-school support |
| ***Hurts productivity*** | ***Deshpande and Weisskopf (2012)***, Indian Railways 1980–2002: ***no evidence*** that reservation reduces productivity |
| ***Creamy sections corner benefits*** | need ***better targeting, not abolition***; poor targeting afflicts many schemes |
| ***Mismatch hypothesis*** | dropout needs ***evidence***, not generalising; answer is ***extra and remedial classes, counselling*** |
| ***Why caste, not class*** | a poor Dalit faces poverty ***plus*** social isolation and discrimination; quota also fixes ***representation*** |

**IBMPCMC** — Objections: **I**njustice · **B**ias-hostility · **M**erit · **P**roductivity · **C**reamy layer · **M**ismatch · **C**lass-not-caste. (own mnemonic)

Answer frame for Mains: ***state the objection, concede what is valid, reply with evidence, then give the reform (targeting, support), not abolition.***

## Recall drill: cover and answer

| | | | |
|---|---|---|---|
| Kennedy and affirmative action | executive order 1961 | Gandhi vs Ambedkar approach | moral regeneration vs objective secular measures |
| Thorat and Attewell 2007 | same qualifications, different hiring outcomes by identity | Deshpande and Weisskopf 2012 | Railways 1980–2002, no productivity loss |
| Mismatch remedy | remedial classes and counselling | Why caste not class | caste adds social isolation; quota also gives representation |
| Corrective justice | reply to the caste-hostility argument | | |

# ⚖ BEYOND QUOTA · BETTER TARGETING · CREAMY LAYER · SUB-CLASSIFICATION ⚖

PYQ None quoted in the handout · Fundamental Rights handout pp. 10–14

✎ *Quota alone cannot close gaps, so add support (land, jobs, handholding, diversity index). Then fix targeting: revise lists, apply the creamy layer, sub-classify OBCs (Rohini) and SCs (Davinder Singh 2024). Rohit Nathan (2026) says parental salary alone cannot decide creamy layer.*

## QUOTA PLUS POLICY

**Idea (Satish Deshpande)**

→ ***Quota Plus***: reservation alone cannot solve all socio-economic disadvantage

**Limits of quota**

→ ***urban vs rural gap***: most backward classes, including Dalits, live in ***rural India*** with poor schooling; quotas in engineering and medical colleges help those ***already able to qualify***

→ ***50% ceiling*** set by the SC (subject to later developments); ***Tamil Nadu*** has historically gone up to ***69%***; raising percentages alone does not remove structural disadvantage

**Additional measures**

→ ***land reforms*** (many Dalits are landless labourers)

→ ***non-farm employment*** generation

→ setting up ***MSMEs***

→ ***handholding*** of beneficiaries: academic and institutional support in professional colleges

→ ***private sector Diversity Index*** on gender, community, caste

**HELM-D** — Quota Plus: **H**andholding · **E**mployment off-farm · **L**and reform · **M**SMEs · **D**iversity index. (own mnemonic)

| Diversity Index (illustrative) | Class |
|---|---|
| 0 – 0.33 | Low diversity |
| 0.33 – 0.66 | Medium diversity |
| 0.66 – 1.00 | High diversity |

**Use of the index**

→ Centre and States could weigh diversity in ***public procurement and outsourcing***

→ discussed in the ***UPA period***; idea is private-sector diversity ***without relying only on compulsory reservation***

**Long-term objective**

→ ***Art 334***: original reservation of seats for SCs and STs in ***Lok Sabha and State Assemblies for ten years***; this is ***political***, not jobs or education

→ extended by amendments; ***104th Amendment Act, 2019*** extended it to ***25 January 2030***

→ handout proposal: ***phased reduction*** of dependence on quotas once equal opportunity is reached

## BETTER TARGETING

**Three tools**

→ ***revise backward-class lists*** through the constitutional process: add new groups, remove those that no longer qualify
→ ***creamy layer*** to exclude advanced members; criteria to be ***reviewed regularly***
→ ***sub-classification*** within OBCs: a few communities take a disproportionate share

**Justice G. Rohini Commission (2017)**

→ appointed under ***Art 340*** to study ***unequal distribution*** of benefits among OBCs in the Central List and suggest ***sub-categorisation within the 27% quota***
→ reported illustrative split into four groups of ***2%, 6%, 9%, 10%***: ***reported proposals, not implemented***
→ report submitted to the President on ***31 July 2023***; submission does not mean implementation

## CREAMY LAYER

**Meaning and scope**

→ stops ***relatively advanced*** members of backward classes from cornering benefits
→ Central framework applies to ***OBC*** reservation in ***jobs and admissions***; income threshold ***₹8 lakh per annum***, with detailed Income/Wealth Test conditions
→ ***SC/ST: Jarnail Singh (2018)*** discussed the principle for promotions; but the Centre and most States have ***no general OBC-style exclusion for SC/ST***, and it is not generally applied to initial appointments

***Union of India v. Rohit Nathan (2026)*** (handout spells it Rohith; verify): Bench of Justices ***P. S. Narasimha and R. Mahadevan*** on UPSC candidates whose parents worked in ***PSUs, banks, private sector***.

**What the SC held**

→ ***parental salary alone cannot decide*** creamy layer; the ***status and category of the parent's post*** matter
→ ***1993 Office Memorandum*** (based on ***Indra Sawhney 1992***) is the foundation; the ***2004 clarificatory letter*** is ***invalid*** to the extent it changed the 1993 criteria (a clarification cannot add substantive conditions)
→ under the 1993 OM, ***salary and agricultural income are excluded*** from the Income/Wealth Test; parental service status still counts
→ ***Art 14:*** treating PSU and private-sector employees' children differently from similarly placed government employees ***without valid basis*** violates equality
→ creamy layer is rooted in ***substantive equality (Arts 14, 15, 16)***, not mere administrative policy
→ ***Art 142*** used for relief: ***supernumerary posts*** for eligible candidates wrongly denied non-creamy-layer benefit, with a ***time-bound*** process

**Critique**

→ test may become ***too income-dependent*** though affirmative action targets social discrimination
→ separate treatment of ***agricultural income*** lets prosperous farming families pass the test; benefits may pass ***across generations*** to the better-off
→ but the framework also uses ***parental status*** and other criteria, not only income

## SUB-CLASSIFICATION OF SCs: DAVINDER SINGH (2024)

**State of Punjab v. Davinder Singh (2024)**

→ ***seven-judge*** Constitution Bench, ***6-1***: States may ***sub-classify within Scheduled Castes*** for fairer distribution of benefits
→ recognises that inequality exists ***among SC communities*** themselves

| | |
|---|---|
| **Conditions** | → must rest on ***empirical data***<br>→ cannot be used to ***include or exclude*** communities from the Presidential SC List (***Art 341***)<br>→ subject to ***judicial review***<br>→ cannot give the ***entire benefit to one sub-group*** arbitrarily |

***JEMS*** — Davinder Singh limits: **J**udicial review · **E**mpirical data · **M**ust not alter Art 341 list · **S**ub-group cannot take everything. (own mnemonic)

Opinions of individual judges on a creamy layer for SCs are ***not*** a universal rule; keep them distinct from an administrative or statutory exclusion.

## Recall drill: cover and answer

| | | | |
|---|---|---|---|
| Quota Plus coined by | Satish Deshpande | Tamil Nadu reservation | up to 69% |
| Quota Plus measures | HELM-D | Art 334 extended to | 25 January 2030 by 104th Amendment (2019) |
| Rohini Commission | 2017, Art 340, report 31 July 2023, 27% OBC split | Creamy layer threshold | ₹8 lakh per annum |
| Rohit Nathan 2026 held | parental salary alone cannot decide; 2004 letter invalid; Art 142 relief | Jarnail Singh 2018 | creamy layer idea for SC/ST promotions |
| Davinder Singh 2024 | 7 judges, 6-1, SC sub-classification allowed with data | Davinder Singh bar | cannot alter Art 341 list |

# ⚖ DOMINANT CASTE DEMANDS · MARATHA · EWS · EFFECTIVENESS ⚖

*PYQ None quoted in the handout · Fundamental Rights handout pp. 14-17*

✎ *Backwardness must be shown by current objective data, not past victimhood or votes. Jats were rejected in Ram Singh (2015); the Maratha quota went 16% to 13/12% to struck down (2021), then a 2024 Act is pending. EWS 10% was upheld 3-2 in 2022.*

## DOMINANT-CASTE DEMANDS: JAT

| | |
|---|---|
| **Background** | → Centre and States have ***discretion*** in listing communities as OBC, within constitutional safeguards and ***judicial review***<br>→ the ***Jati-Varna link*** is clear at the top and bottom of the hierarchy but ***weaker among middle castes***, so backwardness is contentious<br>→ ***2014:*** on the eve of Lok Sabha elections the ***UPA*** decided to include ***Jats in the Central OBC list*** in certain States; critics saw electoral motive |
| ***Ram Singh v. Union of India (2015): principles*** | → ***historical injustice alone*** cannot identify OBCs; ***present*** social and educational conditions must count<br>→ ***continuous evolution*** of backward classes: e.g. recognition of ***transgender persons*** in ***NALSA (2014)***<br>→ ***self-perception cannot be the sole basis***; need ***objective, contemporary data*** (no single time period fixed)<br>→ questioned the ***adequacy of material*** behind the Jat decision; need for ***reliable caste-based data*** |

**Vertical discrimination**

→ against groups lower in the traditional hierarchy
→ answered by ***Arts 15(4) and 16(4)*** (affirmative action in education and jobs)

**Horizontal discrimination**

→ cuts across castes: ***women, transgender persons***
→ answered by ***Arts 15(1) and 16(2)***; ***horizontal reservation*** cuts across vertical categories where provided
→ also needs ***attitude and infrastructure change***, not quotas alone

## MARATHA RESERVATION: TIMELINE

**2014**
Maharashtra announces ***16% for Marathas*** and a proposed ***5% for Muslims*** in education and jobs; legal challenges over backwardness, religion and the ceiling

**2018**
***SEBC Act, 2018***: ***16%*** for Marathas in education and jobs; challenged in the ***Bombay High Court***

**2019**
***Bombay HC*** broadly upheld but cut it to ***13% in jobs and 12% in education***

**2021**
***Jaishri Laxmanrao Patil***: SC ***struck down*** the 2018 Act; no ***extraordinary circumstances*** to cross the ***50% ceiling***; reaffirmed ***Indra Sawhney (1992)***

**2024**
new ***SEBC Act***: ***10%*** for Marathas, ***additional*** to existing quotas; challenged on the ceiling. Handout: ***as of October 2026 still before the Bombay HC*** (verify)

***SEBC-16-13-10*** – Maratha numbers: ***16*** (2018 Act) → ***13/12*** (HC 2019) → ***struck*** (SC 2021) → ***10*** (2024 Act). (own mnemonic)

## EWS RESERVATION

**Constitutional basis**

→ ***103rd Amendment Act, 2019*** added ***Arts 15(6) and 16(6)***: ***10% reservation for Economically Weaker Sections***, subject to conditions

**Criticisms**

→ ***breaks the 50% ceiling*** of Indra Sawhney
→ Art 16(4) tests are ***backwardness and inadequate representation***; EWS may not meet them
→ ***purely economic criterion***: earlier cases said social backwardness cannot rest on economics alone
→ a separate ***vertical*** category though poverty cuts across communities; ***excludes*** poor persons in SC, ST, OBC groups

***Janhit Abhiyan v. Union of India (2022)***: five-judge bench ***upheld*** the amendment ***3-2***; economic criteria valid; exclusion of SC/ST/OBC upheld. The ceiling and economics points are ***criticisms debated***, not the legal position that invalidates EWS.

## EFFECTIVENESS OF RESERVATION

| | |
|---|---|
| *Gains (supporters)* | → ***education gaps*** between SC/ST and general population narrowed<br>→ more ***representation*** in services and institutions<br>→ rise of a ***Dalit middle class*** |
| *Continuing challenges* | → unequal access to ***quality education***<br>→ ***concentration*** of benefits<br>→ inadequate representation at ***higher levels***<br>→ judge by ***representation and broader socio-economic progress*** |

## Recall drill: cover and answer

| | | | |
|---|---|---|---|
| Ram Singh 2015 about | Jat inclusion in Central OBC list rejected | Ram Singh: backwardness needs | objective, contemporary data; not history or self-perception alone |
| NALSA 2014 | transgender persons recognised as socially disadvantaged | Vertical vs horizontal discrimination | caste hierarchy vs cuts across castes (women, transgender) |
| Jaishri Patil 2021 | Maratha 2018 Act struck; 50% ceiling | Maratha 2024 Act | 10%, pending Bombay HC (verify) |
| EWS amendment | 103rd, 2019; Arts 15(6) and 16(6); 10% | Janhit Abhiyan 2022 | 5 judges, 3-2, EWS upheld |

# ARTICLE 19 · RESTRICTIONS · DEFAMATION · SUBRAMANIAN SWAMY

*PYQ None quoted in the handout · Fundamental Rights handout pp. 17-20*

✎ *Art 19(1) gives citizens seven (now six) freedoms; each has its own list of grounds for restriction. Speech has the longest list (eight). Press, silence, information and privacy are inferred. Criminal defamation survived in Subramanian Swamy (2016), now sits in BNS s. 356.*

## ARTICLE 19(1): THE RIGHTS (CITIZENS ONLY)

| Clause | Right | Restriction clause |
|---|---|---|
| (a) | freedom of ***speech and expression*** | 19(2) |
| (b) | assemble ***peaceably and without arms*** | 19(3) |
| (c) | form ***associations, unions, co-operative societies*** | 19(4) |
| (d) | move freely throughout India | 19(5) |
| (e) | reside and settle anywhere in India | 19(5) |
| (f) | ***omitted*** (property) | - |
| (g) | practise any ***profession, occupation, trade or business*** | 19(6) |

**SAA-MRP** — Art 19(1): **S**peech · **A**ssembly · **A**ssociation · **M**ovement · **R**esidence · (f gone) · **P**rofession. (own mnemonic)

## GROUNDS OF RESTRICTION

| | |
|---|---|
| *19(2): speech and expression (eight grounds)* | → ***sovereignty and integrity of India · security of the State · friendly relations with foreign States · public order***<br>→ ***decency or morality · contempt of court · defamation · incitement to an offence*** |

**SSF-P-DM-CDI** — Eight grounds: **S**overeignty · **S**ecurity · **F**riendly relations · **P**ublic order · **D**ecency-morality · **C**ontempt · **D**efamation · **I**ncitement. (own mnemonic)

| Clause | Reasonable restrictions in the interests of |
|---|---|
| 19(3) assembly | sovereignty and integrity · public order |
| 19(4) association | sovereignty and integrity · public order · **morality** |
| 19(5) movement, residence | **general public** · protection of any **Scheduled Tribe** |
| 19(6) profession, trade | **general public**; may also lay down **professional or technical qualifications** and allow **State or State-owned corporations** to carry on a trade, wholly or partly excluding citizens |

## RIGHTS INFERRED FROM 19(1)(a)

**Four inferred rights**

→ **Right to silence:** freedom to speak includes, in context, the **freedom not to speak**

→ **Freedom of the press:** expressing other people's views rests on freedom of expression; **not separately listed**

→ **Right to information:** you cannot express well without information; **right to know** is an aspect of 19(1)(a)

→ **Right to privacy:** constant surveillance creates a **chilling effect**; privacy is a Fundamental Right chiefly under **Art 21**, linked with Art 19

**SPIP** — Inferred from speech: **S**ilence · **P**ress · **I**nformation · **P**rivacy. (own mnemonic)

## DEFAMATION

**Legal position**

→ defamation is a ground in **19(2)**; gives rise to **civil and criminal** proceedings

→ criminal defamation: **Section 356 of the Bharatiya Nyaya Sanhita, 2023**; earlier **IPC Sections 499 and 500**

→ **exceptions** under s.356: good-faith imputations · comment on **public conduct of public servants** · **truth for the public good**

**Issues with criminal defamation**

→ **public remedy for a private wrong**: civil wrong between parties in most democracies

→ **chilling effect:** self-censorship of journalists and opposition; followers file complaints; social media lets cases be filed in **many parts of the country**

→ **access:** costs and time favour the powerful; the common person struggles

**Subramanian Swamy v. Union of India (2016):** challenge to IPC 499/500 as an unreasonable restriction on 19(1)(a). **For retention:** State must protect **reputation** (dignity). **SC upheld** criminal defamation: **right to reputation is part of Art 21 (life and dignity)**, balanced against free speech

## Recall drill: cover and answer

| | | | |
|---|---|---|---|
| Art 19(1)(f) | omitted | Art 19 applies to | citizens only |
| Number of grounds in 19(2) | eight | Grounds for 19(4) association | sovereignty, public order, morality |
| 19(5) special ground | protection of Scheduled Tribe interests | Four inferred rights | SPIP |
| Criminal defamation now | BNS section 356 (was IPC 499, 500) | Subramanian Swamy 2016 | criminal defamation upheld; reputation is part of Art 21 |

# CONTEMPT OF COURT

PYQ None quoted in the handout · Fundamental Rights handout pp. 20–22

✎ *Courts can punish contempt under Arts 129 and 215 and the 1971 Act. The trouble is vagueness: scandalising the court, judge in own cause, intent vs effect. Mulgaokar (1978) says use sparingly; the UK abolished scandalising in 2013. Reform: objective standards.*

## MEANING AND TYPES

**Constitutional and statutory basis**

→ **Contempt of Courts Act, 1971** defines and regulates it
→ **Art 129:** Supreme Court is a **Court of Record** and can punish its own contempt
→ **Art 215:** same for **High Courts**

**Civil contempt**

→ **wilful disobedience** of any judgment, decree, direction, order, writ or process
→ or **wilful breach of an undertaking** given to a court

**Criminal contempt**

→ **scandalising** or lowering the authority of a court
→ **prejudicing or interfering** with judicial proceedings
→ interfering with or **obstructing the administration of justice** in any other way

**Why the power exists:** unpopular rulings can trigger campaigns that undermine the **independence and authority** of the judiciary; without independence the **public interest** suffers.

## ISSUES

**Five issues**

→ **Nemo judex in causa sua** (no one is judge in their own cause): the court whose authority is attacked may itself decide the contempt
→ **Vagueness:** "scandalising the court"; no objective yardstick; broad use **stifles genuine criticism**
→ **Intent vs effect:** proceedings may look at the **tendency** of criticism rather than **mens rea**; relevance of intention depends on the type of contempt
→ **Impression of infallibility:** judges are human; just criticism of a judge is not criticism obstructing the institution
→ **Judge vs court:** contempt of court is not contempt of an individual judge; the line blurs

**NVIJ** — Issues: **N**emo judex · **V**agueness · **I**ntent vs effect · **I**nfallibility · **J**udge vs court. (own mnemonic)

***In Re S. Mulgaokar (1978):*** Justice **V. R. Krishna Iyer**: judges should have **broad shoulders**; protect the **administration of justice**, not the personal reputation of judges.

**Mulgaokar guidelines**

→ **sparing use**; not every criticism merits contempt
→ act seriously when an attack is **calculated to obstruct or destroy** the judicial process
→ **distinguish judge from court**
→ **press freedom:** the press may criticise courts within responsible limits
→ **judicial restraint** even if language is harsh
→ for **malicious or intimidatory** attacks, use contempt in the public interest

## SAFEGUARDS IN THE 1971 ACT

*Section 13 and Section 15*

→ **s.13:** no sentence unless the contempt ***substantially interferes*** with due course of justice; after the ***2006 amendment truth is a defence*** if in ***public interest*** and ***bona fide***

→ **s.15:** criminal contempt (other than in the court's presence): ***suo motu*** by SC or HC; consent rule does ***not restrict suo motu*** jurisdiction

## COMPARISONS AND REFORM

| Country | Position |
|---|---|
| UK | ***abolished scandalising the judiciary*** as contempt in England and Wales in ***2013***; "old fools" illustration: being old is a fact, being a fool is opinion |
| USA | strong free-expression protection; contempt is ***more restrictive*** for criticism outside the courtroom |

*Reform agenda*

→ ***objective standards*** in place of vague phrases (Art 19(1)(a) compatibility)

→ ***criticism is not obstruction***; keep contempt for conduct that obstructs justice

→ ***judicial accountability:*** criticism improves institutions

→ protect the ***administration of justice, not judges' reputation***

## Recall drill: cover and answer

| | | | |
|---|---|---|---|
| Contempt Act year | 1971 | Articles on contempt power | 129 (SC) and 215 (HC) |
| Civil contempt | wilful disobedience or breach of undertaking | Criminal contempt | scandalising, prejudicing proceedings, obstructing justice |
| Nemo judex | no one is judge in their own cause | Mulgaokar 1978 words | broad shoulders (Krishna Iyer) |
| Truth as defence | section 13, after 2006 amendment, public interest and bona fide | UK abolished scandalising in | 2013 |

# BOOK BANS · SEDITION · OBSCENITY · FILM CERTIFICATION · SECTION 66A

***PYQ None quoted in the handout · Fundamental Rights handout pp. 23-27***

*Controversy alone does not justify a ban; the State must stay inside Art 19(2). Sedition (s.124A) was read down in Kedar Nath, put in abeyance in 2022 and replaced by BNS s. 152. Obscenity moved from Hicklin to community standards. Section 66A fell in Shreya Singhal (2015).*

## BANNING OF BOOKS

*Position and arguments against bans*

→ restrictions only on grounds in ***Art 19(2)***; a book being ***controversial, unpopular or offensive*** is not enough

→ ***freedom of expression*** central to liberal democracy, even for unpopular ideas

→ ***right to receive information:*** bans hurt ***readers*** too

→ ***chilling effect:*** writers and historians self-censor

→ ***threat of violence:*** the State should not reward it by suppressing lawful expression; it must ***protect expression and keep order***

***S. Rangarajan v. P. Jagjivan Ram (1989):*** expression cannot be suppressed because of ***threatened demonstrations or violence***; State must protect lawful expression; need a ***proximate connection*** to harm, not ***illusory or remote*** threats. A film case, but applies to books too.

# SEDITION

**History**

→ colonial offence put in the **IPC in 1870**; used against **Tilak** and against **Gandhi (1922)**

→ **IPC s.124A:** hatred, contempt or **disaffection** against the government established by law; criticised for vague wording and misuse against journalists, activists, students and opponents

**Kedar Nath Singh v. State of Bihar (1962):** SC **upheld s.124A** but **restricted it** to speech or acts involving **incitement to violence or tendency to create public disorder**. Strong criticism of government alone is not sedition.

**Issues**

→ **colonial legacy**

→ **misuse against dissent**

→ **chilling effect** on 19(1)(a)

→ **government of the day is not the State or the nation**

**1870**
sedition enters the **IPC**

**1922**
**Gandhi** prosecuted

**1962**
**Kedar Nath:** upheld but read down

**2022**
SC directs **s.124A be kept in abeyance**; deals with fresh and pending cases

**1 Jul 2024**
**BNS** in force; **124A not retained**; **s.152 BNS** introduced

**BNS Section 152: acts endangering sovereignty, unity and integrity**

→ covers purposely or knowingly **exciting secession, armed rebellion, subversive activities**, encouraging **separatist feelings**, endangering sovereignty, unity, integrity

→ by **words, signs, visible representation, electronic communication, financial means** or otherwise

→ punishment: **life imprisonment or up to seven years**, plus fine

→ **Explanation protects lawful criticism:** disapproval of government measures to get them changed by **lawful means**

→ **critics:** "subversive" and "separatist" need careful reading or can catch dissent; must satisfy **19(1)(a) and 19(2)**

# OBSCENITY

**1868**
**Hicklin test:** obscene if it can **deprave and corrupt** susceptible minds; isolated passages can be judged

**1965**
**Ranjit Udeshi:** SC applied Hicklin; upheld conviction over sale of **Lady Chatterley's Lover**

**2014**
**Aveek Sarkar:** SC **rejected Hicklin**; **contemporary community standards**; judge the **work as a whole** in context; **mere nudity is not obscenity**

**Law and balance**

→ earlier **IPC 292–294**; now **BNS 294–296**; online: **IT Act ss.67 and 67A**

→ sexuality or nudity is **not automatically obscene**; balance **artistic expression** with **decency and morality**

**HRA** — Obscenity tests in order: **H**icklin (1868) → **R**anjit Udeshi (1965, applied it) → **A**veek Sarkar (2014, community standards). (own mnemonic)

## FILM CERTIFICATION

**Framework**

→ cinema is protected by **19(1)(a)** subject to **19(2)**

→ **CBFC:** statutory body under the **Ministry of Information and Broadcasting**, set up under the **Cinematograph Act, 1952**; films need **prior certification** (pre-censorship)

→ **K. A. Abbas (1970):** upheld pre-censorship with safeguards because of the film's **visual and emotional impact**

→ **Rangarajan (1989):** no suppression for threats of protest; **no Heckler's Veto**

| Certificate | Meaning |
|---|---|
| U | unrestricted public exhibition |
| UA 7+ | parental guidance below 7 |
| UA 13+ | parental guidance below 13 |
| UA 16+ | parental guidance below 16 |
| A | adults only |
| S | restricted to a specified profession or class |

**Cinematograph (Amendment) Act, 2023**

→ **age-based** categories UA 7+, 13+, 16+

→ **perpetual validity** of certificates (earlier 10-year limit removed)

→ **anti-piracy** provisions on unauthorised recording and exhibition

→ removed the **Centre's revisional powers under s.6(1)**, consistent with **K. M. Shankarappa**

→ **Cinematograph (Certification) Rules, 2024:** online applications, transparency, priority screening

**Issues**

→ **subjectivity**

→ **paternalism** toward adults

→ **political influence**

→ **chilling effect** (cuts, delays)

→ certification should **guide, not censor**

**Current affairs (verify):** the **September 2026** magazine reports **New Guidelines for Film Certification 2026** from MIB, superseding the 1991 notification, with categories **U/A 7+, 13+, 16+, A and Specialized**. Check the exact text before quoting.

## SECTION 66A, IT ACT

**What it was**

→ inserted by the **IT (Amendment) Act, 2008**, in force **2009**; up to **3 years** and fine

→ **problems: vague terms, arbitrary use** against criticism, **chilling effect**; mere annoyance is **not a 19(2) ground**

**Shreya Singhal v. Union of India (2015)**

→ SC **struck down s.66A** as violating **19(1)(a)**, not saved by 19(2). Principles: **discussion and advocacy are protected**, only **incitement** tied to a 19(2) ground can be restricted

→ **vagueness**

→ **overbreadth**

→ **chilling effect. 2022:** cases still being filed; SC said **no one can be prosecuted under 66A** and ordered references removed from pending cases.

**Significance**

→ **online speech** is protected by 19(1)(a)

→ cannot criminalise speech for being **annoying, inconvenient or offensive**

→ restrictions must be **clear, reasonable, within 19(2)**

→ reaffirms ***judicial review***

## Recall drill: cover and answer

| | | | |
|---|---|---|---|
| Rangarajan 1989 | no ban due to threatened violence; proximate link needed | Sedition in IPC year | 1870 |
| Kedar Nath 1962 | s.124A upheld but limited to incitement to violence or public disorder | 2022 sedition order | kept in abeyance |
| BNS in force | 1 July 2024; s.152 replaces sedition in spirit | s.152 punishment | life or up to 7 years plus fine |
| Hicklin to Aveek Sarkar | depraving minds to community standards, work as a whole | CBFC under | Cinematograph Act 1952 |
| K. A. Abbas 1970 | pre-censorship upheld | Shreya Singhal 2015 | s.66A struck down; vagueness, overbreadth, chilling effect |

# FREEDOM OF SPEECH AND EXPRESSION · SIGNIFICANCE · BALANCE · THREATS

***PYQ None quoted in the handout · Fundamental Rights handout pp. 27–28***

✎ *Speech has value in itself, keeps democracy accountable, builds community, drives change and the marketplace of ideas. Restrictions must be proportionate; err on the side of freedom. Threats: old laws, weak politicians, weak courts, compliant media, Heckler's Veto, pliant officials.*

## WHY FREEDOM OF SPEECH MATTERS

**Five reasons**

→ ***Inherent value:*** a faculty unique to humans (imaginative and visual communication); ***expression of human nature***

→ ***Cornerstone of democracy:*** accountability through free media and criticism; not absolute, but society must ***tolerate unpopular views*** (Galileo, Socrates)

→ ***Enables community life:*** minorities feel they belong only if their views are heard; collective life needs ***equal worth of views***

→ ***Enables progressive change:*** women's suffrage, workers' conditions, African American voting rights; better governance through ideas and criticism

→ ***Promotes innovation: marketplace of ideas***; best ideas gain acceptance; contest refines ideas

**ICC-PI** — Significance: **I**nherent value · **C**ornerstone of democracy · **C**ommunity life · **P**rogress · **I**nnovation. (own mnemonic)

## BALANCING FREEDOM AND RESTRICTION

**Proportionality**

→ freedom is ***not absolute***: it must not become a tool for mischief or for violating others' rights

→ restrictions must be ***proportionate***: only as wide as the objective needs

→ when in doubt, ***err on the side of freedom***

→ ***Example:*** banning two-wheelers to stop road accidents is ***over-restriction***; tackle the causes of accidents instead

***Current affairs (verify):*** the ***August 2026*** magazine notes ***In Re Noise Pollution (2005)***: Art 19(1)(a) does ***not*** permit ***amplified noise*** that violates others' rights. Use it as a boundary example for speech vs others' rights.

## THREATS TO FREEDOM OF SPEECH IN INDIA

**Five threats**

→ ***Obsolete colonial laws*** and moral standards not revised for modern times

→ ***Weakness of the political class*** in amending or repealing restrictive laws; misuse to silence dissent

→ ***Weakness of the judiciary:*** reluctance to strike down or narrow such laws; sedition shows a law can ***chill speech even with few convictions***

→ ***Weakness of media and publishers:*** aligning with government; publishers ***withdrawing books under threat*** = ***Heckler's Veto***

→ ***Moral corruption of officials:*** carrying out orders under political pressure despite weak charges

***OPJMO*** — Threats: **O**bsolete laws · **P**oliticians · **J**udiciary · **M**edia and publishers · **O**fficials. (own mnemonic)

***Heckler's Veto:*** the threat of disruption or violence by one group effectively silences a speaker. The remedy (Rangarajan): the State must protect lawful expression and keep order, not give in to the heckler.

### Recall drill: cover and answer

| | | | |
|---|---|---|---|
| Five reasons FoSE matters | ICC-PI | Marketplace of ideas means | free contest of ideas refines them |
| Proportionality example | two-wheeler ban for accidents is over-restriction | Five threats | OPJMO |
| Heckler's Veto | threat of disruption silences speech | Noise pollution case 2005 (verify) | amplified noise not protected by 19(1)(a) |

# FREEDOM OF THE PRESS · ROLE OF MEDIA · ISSUES · TRIAL BY MEDIA

*PYQ None quoted in the handout · Fundamental Rights handout pp. 29–32*

*Press freedom is inferred from Art 19(1)(a). Media is a civic forum and watchdog; Sen's China example shows what censorship costs. Problems: ownership concentration, paid news, conflicts of interest, trial by media (Sahara, postponement), TRP-driven sensationalism.*

## CONSTITUTIONAL BASIS AND ROLE

**Basis**

→ press freedom is ***not named*** in the Constitution; it is ***inferred from Art 19(1)(a)***

→ ***NCRWC*** recommended explicit recognition in Art 19

**Role of media in a democracy**

→ ***civic forum:*** a "parliament of citizens"; public discussion, debate, criticism

→ ***watchdog:*** speaks truth to power; more press freedom, ***more accountability***; modern democracy is ***mediated***

→ ***adversarial relationship*** (slightly) with government is a ***sign of health***

→ ***protective:*** voice to the voiceless, helps welfare of weaker sections

→ ***information:*** censorship leaves citizens, then government, less informed and weakens feedback

→ ***value creation:*** brings attention to disasters and neglected issues (health facilities, malnutrition, road accidents, schools) and shapes what the government treats as important

**CWAPIV** — Roles: **C**ivic forum · **W**atchdog · **A**dversarial · **P**rotective · **I**nformation · **V**alue-setting. (own mnemonic)

***Amartya Sen's example:*** in the ***Great Chinese Famine (1958–61)***, censorship meant even officials lacked reliable information on the crisis; absence of free information and criticism worsened the disaster. A free press helps governments see and answer suffering.

## ISSUES AND CHALLENGES

**Press freedom in India**

→ many registered publications and channels suggest a vibrant space, but ***numbers do not prove freedom***

→ ***World Press Freedom Index (RSF)*** ranks countries. Rank figures in the lecture are ***year-specific***, not the present rank (check current RSF)

**Concentration of ownership**

→ readership and viewership concentrated in a few entities; easier for the powerful to influence

→ owners have other businesses and dealings with government (contracts, approvals) and links with parties

→ ***Murdochisation:*** one entity dominating ***print, TV and radio***; reduces diversity; limits on ***cross-media concentration*** argued for

**Media corruption**

→ ***Paid news:*** payment-influenced content presented as news; ***not a separate offence*** under the ***RPA 1951*** by that label, though conduct may fall under other laws

→ ***Conflict of interest:*** outlets holding ***equity in businesses*** they then cover

## TRIAL BY MEDIA

**Meaning and rights hit**

→ media acts as ***judge, jury and executioner***: a ***Kangaroo Court*** (body without legitimate authority acting as a court); Khap Panchayats criticised similarly

→ ***reputation*** (Art 21 dignity): guilty before the verdict

→ ***privacy:*** excessive reporting of personal details

→ ***fair trial:*** pressure on the judiciary, loss of ***presumption of innocence***, interference with administration of justice

***Sahara India Real Estate v. SEBI (2012): Doctrine of Postponement.*** If immediate reporting creates a ***real and substantial risk*** to a fair trial, the court may order a ***temporary postponement***, with strict safeguards: ***necessary and proportionate***; balance fair trial with public information.

## COMMERCIALISATION OF MEDIA

**Advertisement-driven journalism**

→ "***Good news is no news***": chase for ads and ***TRPs*** fuels sensationalism

→ the ***Chinese Wall*** between editorial and marketing has been ***breached*** (it should stop commercial pressure on editorial decisions)

**Sensationalism: five forms**

→ ***exclusive stories*** chased for TRPs

→ ***breaking news*** on unfinished stories: inaccuracy

→ ***commodification:*** serious news packaged as entertainment

→ ***yellow journalism:*** little researched content, ***sensational headlines***

→ ***gonzo journalism:*** reporter becomes part of the story; deliberately subjective, ***not necessarily unethical***

→ ***post-truth:*** emotion and belief outweigh objective facts

**EBCYGP** — Sensationalism: **E**xclusives · **B**reaking news · **C**ommodification · **Y**ellow · **G**onzo · **P**ost-truth. (own mnemonic)

→ no uniform professional licence; course quality varies

| | |
|---|---|
| **Poor quality of journalism** | → need better **education and training standards without hurting independence** |

## Recall drill: cover and answer

| | | | |
|---|---|---|---|
| Press freedom basis | inferred from Art 19(1)(a) | NCRWC recommendation | explicit press freedom in Art 19 |
| Sen's example | Great Chinese Famine 1958–61 | Murdochisation | one entity dominating print, TV, radio |
| Paid news in RPA 1951 | not a separate offence by that label | Kangaroo court | acts as court without legitimate authority |
| Sahara v. SEBI 2012 | doctrine of postponement | Chinese Wall | editorial separate from marketing |
| Gonzo journalism | subjective, reporter involved, not necessarily unethical | | |

# REGULATION OF MEDIA · PRESS COUNCIL · FDI · IT RULES, 2021

**PYQ None quoted in the handout · Fundamental Rights handout pp. 32–37**

✎ *Self-regulation is toothless (Katju); government regulation is risky; the ideal is independent external regulation. Know the bodies, the Press Council make-up, FDI limits, the Programme Code, and the IT Rules 2021 (intermediaries, SSMIs, traceability, three-tier grievance, OTT).*

## NEED AND BODIES

| | |
|---|---|
| **Why independent regulation** | → media is meant to be **adversarial**, so government regulation can harm media and society<br>→ self-regulation is the ideal on paper, but **Justice Markandey Katju**: self-regulation equals **no regulation**<br>→ so **external regulation independent of government** is more prudent<br>→ **Leveson Inquiry (UK, 2012)** after the **News of the World phone-hacking** scandal backed stronger independent press regulation |

| Body | Scope |
|---|---|
| **BCCC** (Broadcasting Content Complaints Council) | self-regulation of **non-news** broadcasting content |
| **NBDSA** (News Broadcasting and Digital Standards Authority, earlier NBSA) | self-regulation of **news broadcasting** |
| **ASCI** (Advertising Standards Council of India) | self-regulation of **advertising** standards |

Critics call self-regulatory bodies **toothless**: weak enforcement powers.

## PRESS COUNCIL OF INDIA

| | |
|---|---|
| **Composition** | → statutory body under the **Press Council Act, 1978**; **Chairperson + 28 members**; chair traditionally a **retired SC judge**<br>→ **20** represent the press · **5** from Parliament · **1** Bar Council of India · **1** UGC · **1** Sahitya Akademi |

**20-5-1-1-1** — PCI 28: **20** press + **5** Parliament + one each from **Bar Council, UGC, Sahitya Akademi** (20+5+3 = 28). (own mnemonic)

**Functions and limits**

→ two functions: ***preserve press freedom*** and ***maintain standards and ethics*** of journalism

→ scope mainly ***newspapers and news agencies***; cannot directly regulate ***TV and online***; limited enforcement, so demands for stronger comprehensive regulation

## FDI IN NEWS MEDIA

| Category | FDI limit | Route |
|---|---|---|
| ***Print*** (news and current affairs) | ***26%*** | Government approval |
| ***Digital news media*** (specified activities) | ***26%*** | Government approval |
| ***TV news and current affairs channels*** | ***49%*** | Government approval |

**Case for liberalising**

→ ***First Press Commission (1955)*** feared excessive foreign control

→ but print still has ***monopolies and concentration***

→ more investment could help ***small newspapers survive***, with ***editorial control kept domestic***

## GOVERNMENT SUPPRESSION OF MEDIA

**Pressure routes**

→ legislation, executive action, ***licensing, advertising policy***, regulatory pressure

**Illustrations**

→ ***Yakub Memon coverage (2015):*** notices reportedly sent to ***ABP News, Aaj Tak, NDTV*** under the ***Programme Code*** of the ***Cable Television Networks Rules, 1994***

→ ***Programme Code bars:*** offences to good taste or decency · content inciting ***violence or public disorder***. ***Criticism:*** vague words allow arbitrary use

→ ***denial of government advertising*** to particular outlets: indirect pressure on press freedom

## DIGITAL NEWS AND THE IT RULES, 2021

**Why digital news is hard to regulate**

→ internet keeps ***evolving***; fixed classes can force structures

→ ***convergence:*** TV channels also online

→ ***foreign ownership*** in some platforms

→ ***borderless:*** news in the USA is read in India

→ ***platforms*** (Google, Facebook) distribute news: publisher vs intermediary vs distributor

**Scope**

→ ***IT (Intermediary Guidelines and Digital Media Ethics Code) Rules, 2021***, under the ***IT Act, 2000***

→ ***intermediary:*** receives, stores or transmits records for another (Facebook, WhatsApp, YouTube, Instagram); ***digital news and OTT publishers are not automatically intermediaries***

→ ***reasons:*** fake news · hate speech and security threats · abuse · incitement · ***morphed pictures of women*** · defamation. ***Tehseen Poonawalla (2018)*** (mob lynching guidelines

**Due diligence by intermediaries**

→ ***inform users*** of rules, privacy policy, user agreement

→ ***act on lawful orders*** to remove or disable unlawful content

→ ***retain information*** for prescribed periods (***180-day*** requirements in defined cases, not for every deleted item)

→ ***grievance redressal*** mechanism

**Significant Social Media Intermediaries (SSMI)**

→ threshold originally ***50 lakh registered users*** in India

→ extra duties: ***Chief Compliance Officer*** · ***Resident Grievance Officer*** · ***Nodal Contact Person*** (24x7 with law enforcement) · ***monthly compliance report***

**CRNM** — SSMI four: **C**hief compliance officer · **R**esident grievance officer · **N**odal person · **M**onthly report. (own mnemonic)

**First originator (messaging SSMIs)**

→ must enable identification of the ***first originator*** on a ***judicial or authorised government order***, for serious offences (sovereignty, security, public order, sexual violence)

→ ***concerns:*** breaks ***end-to-end encryption***; ***privacy (Art 21)*** needs legality, necessity, proportionality; security and business interests

| Tier | Grievance mechanism for digital publishers |
|---|---|
| 1. Publisher | appoint a ***Grievance Redressal Officer***; resolve within the prescribed period (originally ***15 days***) |
| 2. Self-regulatory body | of publishers, if complainant is not satisfied |
| 3. Government oversight | ***Central Government and an Inter-Departmental Committee***; criticised as ***government-run final oversight*** |

**Other provisions**

→ ***emergency blocking*** directions under the specified process: censorship worries

→ ***OTT classification:*** ***U, U/A 7+, 13+, 16+, A***; ***parental controls*** and ***age verification*** for adult content

→ ***code of ethics:*** digital news publishers follow the ***PCI Norms of Journalistic Conduct*** and the ***Programme Code*** (rules built for old media on new platforms)

## ISSUES WITH THE IT RULES, 2021

**Eight issues**

→ ***Safe harbour (Section 79, IT Act):*** conditional protection from liability for third-party content; lost if due diligence is not followed

→ ***Encryption and privacy:*** traceability may risk mass surveillance

→ ***Limited consultation*** across publishers, tech firms, civil society, users

→ ***Excessive delegated legislation:*** rules cannot go beyond the parent Act; a fuller statute may be needed

→ ***Unreasonable restrictions and censorship:*** test against 19(1)(a) and 19(2)

→ ***Compliance burden***, especially for small digital outlets

→ ***Legacy media*** online may face overlapping print, TV and digital rules

**SELDUCL** — Issues: **S**afe harbour · **E**ncryption · **L**imited consultation · **D**elegated legislation · **U**nreasonable restriction · **C**ompliance burden · **L**egacy media overlap. (own mnemonic)

***Balance:*** Big Tech shapes public discourse and the State must protect security and order, so regulation within constitutional limits is valid; but it must respect ***privacy and free speech***. The digital space is still evolving.

## Recall drill: cover and answer

| | | | |
|---|---|---|---|
| Katju on self-regulation | equal to no regulation | Leveson Inquiry | UK 2012 after phone hacking |
| PCI Act and size | 1978; chair plus 28 members | PCI 28 members | 20 press, 5 Parliament, 1 each Bar Council, UGC, Sahitya Akademi |
| FDI print / digital / TV news | 26 / 26 / 49 per cent, government route | Programme Code under | Cable Television Networks Rules, 1994 |
| IT Rules 2021 SSMI threshold | 50 lakh users | SSMI four officers | CRNM |
| Three tiers | publisher, self-regulatory body, government committee | Section 79 | safe harbour for intermediaries |

# RIGHT TO PROTEST

PYQ None quoted in the handout · Fundamental Rights handout pp. 37–38

✎ *Protest is derived from Arts 19(1)(a), (b), (c) and linked to Art 21. It is subject to reasonable restrictions. Amit Sahni (Shaheen Bagh) says no indefinite blocking of roads; Himat Lal says no unrestricted right but no blanket ban; Rangarajan needs a proximate link to harm.*

## BASIS AND LIMITS

**Constitutional basis**

→ derived mainly from **Art 19(1)(a)** (speech) and **19(1)(b)** (assembly); connected to **19(1)(c)** (association)

→ protests concern **life, livelihood, dignity**, so also linked to **Art 21**

→ since parent rights are subject to **reasonable restrictions**, so is protest; the task is balancing **peaceful protest** with **public order** and others' rights

**AAA-21** — Protest roots: Art 19(1)(a) speech · 19(1)(**b**) assembly · 19(1)(c) association, plus Art 21. (own mnemonic)

## LANDMARK CASES

| Case | Held |
|---|---|
| **Himat Lal K. Shah v. Commissioner of Police (1973)** | assembly right is **not an unrestricted right to protest anywhere, any way**; State may **regulate meetings and processions**, but **no general or arbitrary ban** on peaceful assemblies in all public places |
| **S. Rangarajan (1989)** | expression cannot be suppressed on **illusory, imaginary or remote** threats to public order; need a **proximate connection** with anticipated harm |
| **Amit Sahni v. Commissioner of Police (2020)** (Shaheen Bagh) | protest must be balanced with public order and others' rights; **no indefinite occupation or blockage of public roads** |

**Criticism of Amit Sahni**

→ **disruption is natural** to many protests; society must show **reasonable tolerance** of inconvenience, else the right becomes **hollow**

→ but **public inconvenience is not an extra ground** in Art 19(3); any restriction must be justified within the Constitution and law

**Balance:** assembly is a Fundamental Right; restrict only within constitutional limits; protect **democratic mobilisation and dissent** as well as public order.

## CURRENT AFFAIRS TO ADD (VERIFY)

**July 2026 magazine, "Right to Protest":** the **NEET protest march**; the SC observed that **peaceful protest is guaranteed**. Prelims fodder: **Art 19 is for citizens only**; **"public order" was inserted by the First Amendment, 1951**.

**September 2026 magazine:** the SC used **Art 142** to **quash FIRs** against students in the **NEET-UG 2026 protest**. PYQ 2019 on Art 142 and PYQs on free speech, hate speech and films are noted there. Check the order before quoting.

**HRA-P** — Case order: Himat Lal (1973) → Rangarajan (1989) → Amit Sahni (2020). (own mnemonic)

## Recall drill: cover and answer

| | | | |
|---|---|---|---|
| Protest rooted in | Art 19(1)(a), (b), (c) and Art 21 | Himat Lal 1973 | regulate, but no blanket ban on assemblies |
| Rangarajan 1989 | proximate link needed; no illusory threats | Amit Sahni 2020 | Shaheen Bagh; no indefinite road blockage |
| Critics say | tolerate inconvenience or the right is hollow | Art 19 holders | citizens only |
| First Amendment 1951 added | "public order" (verify) | | |

# ⚖ ARTICLE 19(1)(g) · DANCE BARS · ONLINE GAMING ACT 2025 ⚖

PYQ None quoted in the handout · Fundamental Rights 2 handout pp. 3–4

✎ *Citizens may practise any trade or profession, but Art 19(6) lets the State restrict it in the public interest, prescribe qualifications, or take over a trade. Dance bars show a blanket ban is disproportionate; online gaming shows skill vs chance and Union vs State power.*

## ARTICLE 19(1)(g) AND 19(6)

**Right and restrictions**

→ **19(1)(g):** practise any **profession**, carry on any **occupation, trade or business**

→ **19(6):** reasonable restrictions in the **interests of the general public**

→ **State monopoly:** partial or complete State monopoly in a trade, business, industry or service

→ **professional qualifications:** State may prescribe minimum technical or professional qualifications

→ **public-interest limits** on trades like **liquor and arms**

**State of Maharashtra v. Indian Hotel and Restaurants Association (2013):** SC overturned the **Mumbai dance-bar ban** (adverse moral and social effects). Many women depend on the work for **livelihood. Regulation is fine, a discriminatory or disproportionate blanket ban is not.**

## SKILL-BASED GAMING AND ONLINE GAMING

**Framework**

→ links **profession, public morality, technology and federalism**

→ **Art 19(1)(g)** and **19(6)**; **Entry 34, State List:** betting and gambling is a **State subject**

→ **R.M.D. Chamarbaugwala (1957):** competitions of **substantial skill** are not gambling; rummy and some fantasy formats were treated as **games of skill**

→ **Karnataka and Tamil Nadu High Courts** struck down blanket bans on online skill games as **disproportionate**; the position then changed with the **2025 central law**

**Promotion and Regulation of Online Gaming Act, 2025 (verify)**

→ national framework to **prohibit online money games** and promote **e-sports and online social games**

→ **three categories: e-sports · online social games** (no prohibited stakes) · **online money games** (money stakes for monetary gain, **whether skill or chance**)

→ **bans** offering, advertising and facilitating money games; **banks and payment gateways** cannot process them; an **Authority on Online Gaming**; **blocking** powers

→ **penalties:** offering: up to **3 years and ₹1 crore**; advertising: up to **2 years and ₹50 lakh**; search, seizure, corporate liability

| Why the Act | Concerns |
|---|---|
| addiction and financial loss | **overbroad ban** may push users to offshore sites |
| youth vulnerability | **federalism:** betting is a State subject |
| fraud, rigged algorithms | **jobs and investment** hit |
| money laundering | **skill vs chance:** proportionality for games once held skill-based |
| State-by-State fragmentation | enforcement against offshore platforms and payment channels |

**Way forward:** strengthen enforcement against offshore platforms; promote e-sports and social gaming; get judicial clarity on **federalism and proportionality under 19(1)(g)**.

## Recall drill: cover and answer

| | | | |
|---|---|---|---|
| 19(1)(g) right | profession, occupation, trade or business | Dance bar case 2013 | blanket ban disproportionate; regulation allowed |
| Betting entry | Entry 34, State List | Chamarbaugwala 1957 | skill vs gambling |
| Three game categories 2025 | e-sports, online social, online money | Money-game penalty | 3 years and ₹1 crore; advertising 2 years and ₹50 lakh |

# ARTICLE 20 · PROTECTION IN CONVICTION · SELF-INCRIMINATION

PYQ None quoted in the handout · Fundamental Rights 2 handout pp. 4-5

✎ *Art 20 has three shields against arbitrary punishment, for citizens and non-citizens, and cannot be suspended in an Emergency. Art 20(3) bars compelled testimony: Selvi (2010) says narco, polygraph and brain mapping cannot be forced, but blood, DNA and fingerprints can be taken.*

## THREE SAFEGUARDS

| Clause | Protection |
|---|---|
| **20(1)** | **ex post facto** criminal laws |
| **20(2)** | **double jeopardy** |
| **20(3)** | **self-incrimination** |

Art 20 applies to **citizens and non-citizens** and **cannot be suspended even during a National Emergency**.

**EDS** — Art 20: **E**x post facto · **D**ouble jeopardy · **S**elf-incrimination (in clause order). (own mnemonic)

## ARTICLE 20(3): SELF-INCRIMINATION

**Meaning**

→ "No person **accused of any offence** shall be compelled to be a witness against himself"

→ protects against **compelled testimonial evidence**; no forced incriminating statements

**Scientific techniques**

→ **narcoanalysis** (sodium pentothal) · **polygraph** (lie detector) · **brain mapping**

**Selvi v. State of Karnataka (2010):** these tests **cannot be forcibly administered**; involuntary use violates **Art 20(3)** (where applicable) and **Art 21**. With **voluntary and informed consent** and safeguards they may be done, but statements are **not automatically admissible**; material discovered through them may be admissible under evidence rules.

**Physical vs testimonial**

→ lawful collection of ***blood, DNA, fingerprints, specimen signatures or handwriting, identification parades*** is generally allowed without consent

→ ***Key distinction:*** 20(3) bars ***compelled testimony***, not every collection of physical or identifying evidence

## Recall drill: cover and answer

| | | | |
|---|---|---|---|
| Art 20 three clauses | ex post facto, double jeopardy, self-incrimination | Suspended in Emergency? | No |
| Applies to | citizens and non-citizens | Selvi 2010 | narco, polygraph, brain mapping not forced |
| Allowed without consent | blood, DNA, fingerprints, handwriting | | |

# ARTICLE 21 · GOLDEN TRIANGLE · LIVELIHOOD · HEALTH · MENSTRUAL HEALTH

*PYQ None quoted in the handout · Fundamental Rights 2 handout pp. 5–7*

*Arts 14, 19 and 21 are the Golden Triangle. Art 21 moved from procedure established by law (Gopalan) to fair, just and reasonable procedure (Maneka), and from a negative duty to positive duties: livelihood (Olga Tellis), health, menstrual health. A "canopy" of rights.*

## FOUNDATION

***Golden Triangle:*** Arts ***14, 19, 21***. Even if other Part III rights were removed, much protection could be deduced from these three (equality, freedom, life and personal liberty).

**Text and early reading**

→ "No person shall be deprived of his ***life or personal liberty*** except according to ***procedure established by law***"

→ first read as protection from ***executive***, not ***legislative***, tyranny; the law's ***reasonableness*** is not mentioned

**1950**
***A. K. Gopalan:*** narrow reading of personal liberty and procedure established by law

**1978**
***Maneka Gandhi:*** procedure must be ***fair, just and reasonable***, not arbitrary or oppressive

**Later**
livelihood, health, shelter, privacy, dignity, environment, access to justice

**Negative to positive obligation**

→ life once meant only physical existence; the State's duty has grown from ***not interfering*** to ***protecting and preserving life*** (health, shelter, education, environment)

→ ***rights read into 21:*** dignity, livelihood, shelter · clean environment and climate · privacy, autonomy, reputation · fair and speedy trial, legal aid · peaceful sleep

→ Art 21 is a ***canopy of rights***

## LIVELIHOOD AND SHELTER

***Olga Tellis v. Bombay Municipal Corporation (1985):*** pavement and slum dwellers evicted as encroachers. Held: ***right to life includes right to livelihood***; eviction needs ***fair and lawful procedure***. It did ***not*** create an absolute right to alternative housing. Linked ***Part III with Part IV***, bridging civil-political and socio-economic rights.

## HEALTH AND MENSTRUAL HEALTH

**Right to health**

→ access to ***healthcare and emergency medical aid*** is part of life and dignity

→ positive duty, extent depends on ***constitutional standards, laws and resources***

**Right to menstrual health**

→ manage menstruation ***safely, affordably, with dignity***: clean toilets, sanitary products, medical support, no stigma

→ linked to ***life, dignity, health, education***; SC stressed sanitary products, private clean toilets and safe disposal in ***schools***

→ ***mandatory menstrual leave:*** the Court left it to ***policy***, not a nationwide judicial order

| *Policy dilemma* | *Practical solutions* |
|---|---|
| severe pain (e.g. endometriosis): no one should be forced to work through it | flexible hours, work from home |
| mandatory employer-paid leave may cause ***hiring bias*** | clean rest rooms, private sanitation, pain relief |
| | school sanitary products, running water, safe disposal |

### Recall drill: cover and answer

| | | | |
|---|---|---|---|
| Golden Triangle | Arts 14, 19, 21 | Gopalan vs Maneka | narrow vs fair, just, reasonable |
| Olga Tellis 1985 | livelihood part of life; no absolute right to alternative housing | Art 21 role shift | negative to positive obligation |
| Menstrual leave | left to policy by the SC | | |

# ⚖ ARTICLE 21 · CLEAN ENVIRONMENT · CLIMATE RIGHT · RANJITSINH (2024) ⚖

*PYQ None quoted in the handout · Fundamental Rights 2 handout pp. 7–8*

✎ *Courts read a clean environment into Art 21 and added the polluter-pays, precautionary, public-trust and sustainable-development principles. M. K. Ranjitsinh (2024) recognised a right against climate change under Arts 14 and 21 and balanced bustard conservation with renewable energy.*

## CLEAN ENVIRONMENT

**1986**
***M. C. Mehta (Oleum gas leak): absolute liability***

**1991**
***Subhash Kumar v. State of Bihar: pollution-free water and air*** under Art 21

**1996**
***Vellore Citizens' Welfare Forum: precautionary principle*** and ***polluter pays*** part of sustainable development

**Four principles**

→ ***polluter pays:*** the polluter bears the cost

→ ***precautionary:*** anticipate and prevent harm

→ ***public trust:*** natural resources are held in trust by the State for the public

→ ***sustainable development:*** balance growth and protection

***PPPS*** — Environment principles: **P**olluter pays · **P**recautionary · **P**ublic trust · **S**ustainable development. (own mnemonic)

→ firecracker air pollution

**Applications**

→ vehicular emissions in Delhi
→ river pollution oversight by courts and tribunals

## RIGHT AGAINST CLIMATE CHANGE

***M. K. Ranjitsinh v. Union of India (2024):*** case on the ***Great Indian Bustard*** hit by ***overhead power lines*** in Rajasthan and Gujarat. Recognised a ***fundamental right against adverse effects of climate change*** under ***Arts 14 and 21***

**Analysis**

→ ***Green vs green dilemma:*** save an endangered bird or expand clean energy
→ renewables seen as ***environmental protection***, not mere commerce
→ ***targeted protection*** on expert assessment; ***institutional humility*** (experts demarcate)

**Significance and criticism**

→ ***constitutionalises climate rights***; recognises impact on health, food, water, dignity; ***climate equity*** (poor hit hardest); ***positive State duties***
→ ***criticism:*** little guidance on ***enforcing*** the new right; relaxing line restrictions may ***weaken bustard protection***

Shows the Constitution as a ***living document***: Art 21 keeps expanding with new environmental challenges.

## Recall drill: cover and answer

| | | | |
|---|---|---|---|
| Absolute liability case | M. C. Mehta 1986, Oleum gas leak | Subhash Kumar 1991 | pollution-free air and water under Art 21 |
| Vellore 1996 | precautionary and polluter pays | Ranjitsinh 2024 right | against adverse effects of climate change, Arts 14 and 21 |
| Green vs green | bustard vs renewable energy | | |

# RIGHT TO PRIVACY · DPDP · RIGHT TO BE FORGOTTEN · DIGITAL ACCESS

*PYQ None quoted in the handout · Fundamental Rights 2 handout pp. 8–10*

✎ *Privacy became a Fundamental Right in Puttaswamy (2017), overruling the older view. It can be limited only by law, for a legitimate aim, if necessary and proportionate. Know surveillance (s.69, Pegasus), DPDP Act 2023, RTI vs privacy, right to be forgotten, personality rights and digital access.*

## JUDICIAL EVOLUTION

**1954 / 1962**
***M. P. Sharma*** and ***Kharak Singh:*** no general right to privacy; but Kharak Singh struck ***night visits*** by police

**1997**
***PUCL: phone tapping*** violates privacy (Art 21) and 19(1)(a); safeguards: lawful authorisation, limited duration, review

**2017**
***K. S. Puttaswamy: nine judges, unanimous***: privacy is a Fundamental Right under ***Arts 14, 19, 21***

**Puttaswamy holdings**

→ ***personal autonomy:*** body, identity, food, relationships, sexual orientation
→ ***informational privacy:*** against unjustified collection, use, disclosure of data
→ ***dignity and equality:*** belongs to everyone, ***not an elitist privilege***
→ ***overruled*** earlier denial and the ***ADM Jabalpur (1976)*** position; base for data protection, LGBTQ+ rights and limits on surveillance

**Restrictions: four tests**

→ ***legality*** (basis in law) · ***legitimate aim*** · ***necessity*** · ***proportionality***

**LLNP** — Privacy test: **L**egality · **L**egitimate aim · **N**ecessity · **P**roportionality. (own mnemonic)

## CONTEMPORARY ISSUES

**Surveillance**

→ ***s.69, IT Act 2000:*** interception, monitoring, decryption on specified grounds with safeguards

→ ***Pegasus*** raised surveillance, accountability and chilling-effect worries; surveillance must be ***lawful, necessary, proportionate, overseen***

**DPDP Act, 2023**

→ protects digital personal data while allowing lawful processing; ***consent***, data security, individual rights, grievance redressal; ***DPDP Rules, 2025*** give phased implementation

→ ***concerns: broad State exemptions***, weak independent oversight

→ ***RTI link: s.8(1)(j) RTI Act*** personal-information exemption; the DPDP Act amends it: privacy vs transparency

**International frame**

→ ***Art 17 ICCPR*** (no arbitrary interference with privacy) · ***Justice A. P. Shah Committee (2012)*** on comprehensive privacy protection

## RIGHT TO BE FORGOTTEN

**Idea and status**

→ seek ***removal, masking or restricted access*** to personal information whose public availability is no longer justified; a person should not be stigmatised for life by irrelevant past data

→ several ***High Courts*** examined it under informational privacy, dignity, reputation (de-indexing, masking identities); ***not absolute***

**GCPRR** — Concerns: **G**lobal internet · **C**ensorship risk · **P**ublic records · **R**TI · **R**ewriting history. (own mnemonic)

**Concerns spelt out**

→ removed on one platform, available elsewhere

→ can suppress legitimate criticism

→ erodes completeness of public records

→ clashes with right to information

→ may rewrite history; balance privacy and rehabilitation with ***expression, accountability, preserved records***

## PERSONALITY RIGHTS AND DIGITAL ACCESS

**Personality rights**

→ protect ***name, image, voice, likeness*** from unauthorised commercial use; tied to privacy, reputation, publicity

→ ***Anil Kapoor (2023)*** and ***Jackie Shroff (2024):*** Delhi High Court protection

→ AI threats: ***deepfakes, voice cloning***; but over-protection can hurt ***satire, parody, art*** (Art 19(1)(a))

**2019**

***Faheema Shirin (Kerala HC):*** internet access linked to education and privacy under Art 21

**2020**

***Anuradha Bhasin:*** expression and trade via the internet protected; restrictions need ***legality and proportionality***; ***indefinite shutdowns impermissible***

**2025**

***Pragya Prasun and Amar Jain:*** ***digital accessibility*** part of right to life and dignity, esp. for persons with disabilities

Digital governance must ***promote inclusion***, not create new barriers to rights. Digital exclusion can block access to ID, banking, scholarships and welfare.

## Recall drill: cover and answer

| | | | |
|---|---|---|---|
| Puttaswamy bench | nine judges, 2017 | Overruled | ADM Jabalpur approach |
| Privacy test | LLNP | PUCL 1997 | phone tapping safeguards |
| RTI exemption for personal info | section 8(1)(j) | Right to be forgotten | removal or masking when no longer justified; not absolute |
| Anuradha Bhasin 2020 | no indefinite internet shutdown | Pragya Prasun 2025 | digital accessibility part of life and dignity |

# PERSONAL AUTONOMY · LIFE PARTNER · MTP · LGBTQ+ RIGHTS

PYQ None quoted in the handout · Fundamental Rights 2 handout pp. 10–12

✎ *Art 21 protects the choice of partner (Hadiya), reproductive autonomy (MTP Act) and sexual and gender identity (NALSA, Navtej). Supriyo (2023) refused a right to same-sex marriage and left it to Parliament. Note the 2026 amendment to the Transgender Act and BNS dropping s.377.*

## CHOICE OF PARTNER

***Shafin Jahan v. Asokan K. M. (2018), Hadiya case:*** right to choose a ***life partner*** is protected by ***Art 21***; freedom of conscience and religion protected; neither the State nor ***patriarchal authority*** can override an adult's lawful choice.

**Related**

→ ***Lata Singh (2006):*** adults may marry outside caste or religion

→ ***Shakti Vahini (2018):*** measures against ***honour crimes***, protect couples

## ABORTION AND REPRODUCTIVE AUTONOMY

**Debate**

→ woman's right over her ***body and reproductive agency*** vs State duty to protect life including ***foetal interests***; when does life begin (biology, morality, religion)

**Cases**

→ ***Suchita Srivastava (2009):*** reproductive choice is part of personal liberty

→ ***X v. Principal Secretary, Health (2022):*** ***unmarried women*** cannot be excluded from abortion access on marital status

| MTP Act 1971 (amended 2021) | Rule |
|---|---|
| ***up to 20 weeks*** | on prescribed grounds, ***one*** registered medical practitioner |
| ***20 to 24 weeks*** | specified categories of women, ***two*** practitioners |
| ***beyond 24 weeks*** | ***Medical Board*** for substantial foetal abnormalities, other recognised cases |
| ***confidentiality*** | identity and privacy protected |

The law ***regulates when*** abortion is permitted; it is ***not an unrestricted right at any stage***. Issues: autonomy, safe treatment, foetal interests, unequal rural access.

## LGBTQ+ RIGHTS (ARTS 14, 15, 16, 19, 21)

**Transgender rights**

→ ***NALSA (2014):*** transgender persons are the ***Third Gender***; treat as ***socially and educationally backward*** with reservation; referred to the ***Yogyakarta Principles (2006)***

→ ***Transgender Persons (Protection of Rights) Act, 2019:*** bars discrimination in education, jobs, health, services

→ ***Amendment Act, 2026*** (handout; verify): ***narrower definition***, ***medical certification***, stronger penalty for forced assumption of transgender identity; raises ***self-identification and NALSA*** concerns

**2009**
***Naz Foundation (Delhi HC):*** read down s.377 for consensual adult acts

**2013**
***Suresh Kumar Koushal:*** SC reversed it

**2018**
***Navtej Singh Johar:*** SC ***decriminalised consensual same-sex acts*** (violated Arts 14, 15, 19, 21); privacy, dignity, ***constitutional morality over majoritarian morality***

**1 Jul 2024**
***BNS*** does not retain s. 377: worry about protection against ***non-consensual*** acts

**Marriage**

→ ***Arun Kumar (Madras HC, 2019):*** "bride" in the Hindu Marriage Act includes a ***transgender woman***

→ ***Supriyo v. Union of India (2023):*** ***no general Fundamental Right to marry***; Special Marriage Act ***not extended*** to same-sex couples; wider recognition ***left to the legislature***

**NNS** — LGBTQ+ case chain: NALSA (2014) → Navtej (2018) → Supriyo (2023). (own mnemonic)

### Recall drill: cover and answer

| | | | |
|---|---|---|---|
| Hadiya case year | Shafin Jahan v. Asokan 2018 | Lata Singh 2006 | adults may marry outside caste or religion |
| MTP time limits | 20 weeks one doctor; 20–24 two doctors; beyond 24 Medical Board | X v. Principal Secretary 2022 | unmarried women included |
| NALSA 2014 | Third Gender, reservation as backward class | Navtej 2018 | consensual same-sex acts decriminalised |
| Supriyo 2023 | no right to same-sex marriage; legislature to decide | BNS and s.377 | not retained |

## ⚖ RIGHT TO DIE · SUICIDE · EUTHANASIA · LIVING WILL ⚖

*PYQ None quoted in the handout · Fundamental Rights 2 handout pp. 12–14*

✎ *Art 21 gives a right to die with dignity in recognised end-of-life situations, not a right to end life at will (Gian Kaur). Attempted suicide is now treated as a mental-health matter. Passive euthanasia and living wills were recognised in Aruna Shanbaug and Common Cause; Harish Rana (2026) covers withdrawing nutrition.*

## SUICIDE AND DECRIMINALISATION

**Why life is different**

→ we can speak or not speak, move or not move; but ***death is irreversible***, so the logic does not carry over directly

**Legal position**

→ ***IPC s.309*** punished an unsuccessful attempt

→ ***Mental Healthcare Act, 2017, s.115: presumption of severe stress***; care, treatment, rehabilitation

→ ***BNS s.226:*** only an attempt ***to compel or restrain a public servant***; the general s.309 offence is ***not retained***

**For decriminalisation**

→ ***compassion***

→ odd to punish an attempt but not the act

→ encourages treatment

→ failure of social support

→ ***golden hour:*** fear of case delays aid

→ global trend to care

**Against**

→ ***social consequences*** for family and society

→ ***State duty*** to protect life

***Gian Kaur v. State of Punjab (1996):*** upheld then-s.309; ***right to life does not include a right to die***; distinguished ending life from ***dignity in the natural process of dying. Law Commission:*** 42nd Report (1971) and 210th Report (2008) recommended repeal.

## EUTHANASIA

| Type | Meaning |
|---|---|
| ***Active*** | direct act, e.g. lethal drug, causes death |
| ***Passive*** | withholding or withdrawing life-sustaining treatment in legally recognised cases |
| ***Voluntary*** | patient's informed wish |
| ***Non-voluntary*** | patient cannot decide; legal decision process needed |
| ***Involuntary*** | against the patient's wishes |

**For**

→ ends suffering

→ informal withdrawals already happen

→ financial burden

→ scarce ICU resources

**Against**

→ medical ethics (duty to preserve life)

→ abuse by vested interests

→ unexpected recovery

→ less research incentive

→ family convenience over patient interest

**2011**

***Aruna Shanbaug:*** passive euthanasia allowed under strict conditions; High Court oversight and medical opinion

**2016**

Medical Treatment of Terminally Ill Patients Bill: ***not enacted***

**2018**

***Common Cause: right to die with dignity*** part of Art 21; passive euthanasia and ***Advance Medical Directives (living wills)*** recognised

**2023**

***Modified Common Cause guidelines:*** simpler procedure, revised medical boards, ***no routine High Court approval***

**2026**

***Harish Rana: Clinically Assisted Nutrition and Hydration (CANH)*** can be medical treatment capable of withdrawal; stress on best interests, medical opinion, family consultation, safeguards (verify)

***Living will:*** a competent adult records wishes on future life-sustaining treatment if they lose capacity.
***Key distinction:*** Art 21 protects dying with dignity in recognised end-of-life situations, ***not*** an unrestricted right to end life.

## Recall drill: cover and answer

| | | | |
|---|---|---|---|
| Mental Healthcare Act section | 115, presumption of severe stress | BNS section on attempt | 226, only to compel a public servant |
| Gian Kaur 1996 | no right to die under Art 21 | Aruna Shanbaug | 2011, passive euthanasia |
| Common Cause 2018 | dignity in dying; living wills | 2023 change | no routine HC approval |
| Harish Rana 2026 | CANH withdrawal (verify) | | |

# ⚖ SPEEDY TRIAL · LEGAL AID · UNDERTRIALS · CUSTODIAL VIOLENCE · D. K. BASU ⚖

PYQ None quoted in the handout · Fundamental Rights 2 handout pp. 14–15

✎ *Hussainara Khatoon made speedy trial and free legal aid part of Art 21. About three-quarters of prisoners are undertrials; BNSS s.479 gives early release. Sunil Batra: prisoners keep their rights. D. K. Basu laid down nine arrest safeguards against custodial violence.*

## SPEEDY TRIAL AND LEGAL AID

***Hussainara Khatoon v. State of Bihar (1979):*** undertrials jailed for years without trial. ***Speedy trial is part of Art 21***; prolonged detention without trial violates liberty; State must give ***free legal aid*** to indigent accused; led to release of many undertrials; ***the process must not become the punishment.***

***Undertrial prisoners***

→ accused kept in jail during investigation or trial, ***not convicted***; about ***three-fourths*** of India's prison population

→ ***reasons:*** overworked police · "***bail is the rule, jail is the exception***" ignored · judicial pendency · weak prosecution · poverty and poor legal aid

→ ***BNSS s.479:*** release after ***half*** of the maximum sentence; ***one-third*** for eligible first-time offenders, with exceptions

→ ***Bhim Singh (2014):*** SC directed effective use of safeguards against long undertrial detention

***OBJWP*** — Undertrial causes: **O**verworked police · **B**ail ignored · **J**udicial pendency · **W**eak prosecution · **P**overty. (own mnemonic)

***Sunil Batra v. Delhi Administration (1978):*** prisoners ***keep their Fundamental Rights***; no arbitrary or inhuman treatment, torture or cruel punishment. Imprisonment limits liberty by law; it does not end ***dignity***.

## CUSTODIAL VIOLENCE

***Meaning and reasons***

→ physical, mental or sexual abuse of persons in custody; ***not every custodial death is custodial violence***

→ ***reasons:*** overworked police · ***media and public pressure*** for quick results (forced confessions) · poor investigation tools · weak training · weak accountability

***Safeguards***

→ ***Art 20(3)*** · ***Art 21*** · ***Art 22***

→ ***BNSS s.53:*** medical examination of arrestee to record injuries

→ ***BNSS s.196:*** magisterial inquiry into custodial death, disappearance or rape

***D. K. Basu v. State of West Bengal (1997):*** guidelines against arbitrary arrest and custodial violence.

| # | *D. K. Basu guideline* |
|---|---|
| 1 | ***police identification*** and name tags |

| | |
|---|---|
| 2 | ***arrest memo***: date, time, witnessed and countersigned |
| 3 | ***inform*** a relative, friend or nominated person |
| 4 | ***police diary*** entry of arrest and person informed |
| 5 | ***injury inspection*** memo with a copy |
| 6 | ***medical examination*** at intervals |
| 7 | documents to ***Magistrate*** |
| 8 | arrestee may ***meet a lawyer*** during interrogation (not throughout) |
| 9 | ***police control room*** information |

**PAIPIMMLC** — Nine steps: **P**olice ID · **A**rrest memo · **I**nform family · **P**olice diary · **I**njury memo · **M**edical check · **M**agistrate · **L**awyer · **C**ontrol room. (own mnemonic)

## Recall drill: cover and answer

| | | | |
|---|---|---|---|
| Hussainara Khatoon 1979 | speedy trial and legal aid under Art 21 | Undertrial share | about three-fourths of prisoners |
| BNSS section 479 | release at half (one-third for first-time offenders) | Sunil Batra 1978 | prisoners keep fundamental rights |
| D. K. Basu 1997 | nine guidelines on arrest | BNSS 196 | magisterial inquiry into custodial death |

# ⚖ DEATH PENALTY · RAREST OF RARE · CLEMENCY · REMISSION ⚖

*PYQ None quoted in the handout · Fundamental Rights 2 handout pp. 15–17*

✎ *Capital punishment is constitutional but limited to the rarest of rare cases (Bachan Singh 1980, Machhi Singh 1983). Mercy lies with the President (Art 72) and Governor (Art 161). Life imprisonment normally means natural life; remission is regulated by BNSS and Sriharan (2015).*

## POSITION AND ARGUMENTS

Art 21 allows deprivation of life only by a ***fair, just and reasonable*** procedure. SC upheld the death penalty but limited it by the ***Rarest of Rare*** doctrine.

**For**

→ ***deterrence***
→ ***retributive justice***
→ ***collective conscience*** on heinous crimes

**Against**

→ ***irreversible***, error kills the innocent
→ ***dignity:*** cruel, inhuman
→ ***reform*** denied
→ ***class bias:*** poor lack lawyers
→ deterrence ***unproven*** vs life term
→ ***extradition*** from abolitionist states; ICC does not use it

**Law Commission**

→ ***35th Report (1967):*** retain
→ ***262nd Report (2015): abolish except terrorism and waging war***; plus police reform, witness protection, victim compensation

## RAREST OF RARE

***Bachan Singh v. State of Punjab (1980):*** upheld death penalty. ***Life imprisonment is the rule, death the exception***; weigh ***aggravating*** (exceptional brutality) and ***mitigating*** factors (age, background, reform chance); ***individualised sentencing***: crime and criminal.

***Machhi Singh v. State of Punjab (1983): five factors***

→ ***manner*** (brutality) · ***motive*** (moral depravity) · ***anti-social nature*** (caste hatred, bride burning) · ***magnitude*** (victims, scale) · ***victim's vulnerability*** (children, elderly)

→ proposed a ***Balance Sheet approach***

**MMAMV** — Machhi Singh: **M**anner · **M**otive · **A**nti-social · **M**agnitude · **V**ulnerable victim. (own mnemonic)

**1996**

***Ravji:*** over-weighed the crime, ignored the criminal

**2009**

***Bariyar:*** Ravji inconsistent with Bachan Singh; mitigating factors restored

**2012**

***Sangeet:*** criticised the mechanical balance sheet; weigh crime and criminal

***Limits of the doctrine***

→ ***subjective*** terms ("collective conscience")

→ ***judge-centric:*** similar crimes, different sentences

→ death sentences reversed on appeal: fairness doubts

## CLEMENCY

***Provisions***

→ ***Art 72:*** President can ***pardon*** death sentences and use other clemency powers

→ ***Art 161:*** Governor can ***suspend, remit, commute*** death sentences but ***cannot grant a full pardon*** in death cases

→ both act on ***aid and advice of the Council of Ministers***

| Case | Held |
|---|---|
| ***Kehar Singh (1989)*** | President may re-examine evidence on mercy petitions; limited judicial review |
| ***Epuru Sudhakar (2006)*** | no mala fide, caste, religion, political favouritism or irrelevant considerations |
| ***Triveniben (1989)*** | undue delay may justify commutation |
| ***Shatrughan Chauhan (2014)*** | unexplained delay and serious mental illness may justify commutation; safeguards on notifying mercy rejection and execution |

***Clemency Board proposal***

→ need: expertise, transparency, timely decisions

→ challenge: constitutional fit; binding or not

→ indicative ***six-month*** period, reasons for delay

## REMISSION AND LIFE IMPRISONMENT

***BNSS, 2023***

→ ***s.473*** suspension and remission · ***s.474*** commutation · ***s.475*** minimum ***14 years*** before statutory release in specified life cases · ***s.477*** Central concurrence in specified cases

→ ***Life imprisonment ordinarily means remainder of natural life***, not automatic release at 14 years

***Union of India v. V. Sriharan (2015)*** (Rajiv Gandhi case): constitutional clemency is distinct from statutory remission; ***Central concurrence*** needed in specified cases; courts may impose ***life without ordinary remission*** for a fixed term over 14 years or natural life. ***Later:*** SC ordered release of ***Perarivalan (May 2022)*** and six others (Nov 2022).

## Recall drill: cover and answer

| | | | |
|---|---|---|---|
| Rarest of rare source | Bachan Singh 1980 | Machhi Singh factors | manner, motive, anti-social, magnitude, vulnerability |
| 262nd Report | abolish except terror and waging war | Art 161 limit | Governor cannot pardon in death cases |
| Shatrughan Chauhan 2014 | delay and mental illness can justify commutation | BNSS 475 | 14 years minimum before release in specified cases |
| Sriharan 2015 | clemency vs remission; special life term | | |

# ⚖ ARTICLE 21 · POSH · JALLIKATTU · ASSESSMENT · ARTICLE 21A ⚖

PYQ None quoted in the handout · Fundamental Rights 2 handout pp. 17–19

✎ *Vishakha led to the POSH Act 2013. Reputation is part of Art 21 (Swamy). Jallikattu balanced animal welfare and Art 29(1) culture (2023 upheld State laws). Art 21 is strong but invites overreach and weak implementation. Art 21A (86th Amendment) gives free education for 6 to 14.*

## SEXUAL HARASSMENT: VISHAKHA TO POSH

***Vishakha v. State of Rajasthan (1997):*** PIL on workplace harassment. Violates ***Arts 14, 15, 19(1)(g), 21***; with no law, SC framed the ***Vishakha Guidelines***, which became the base of the ***POSH Act, 2013***.

**POSH Act, 2013**

→ ***Internal Committee*** mandatory for workplaces with ***10 or more*** employees

→ ***Local Committee*** where an IC is unavailable (incl. some unorganised sector)

→ time-bound inquiry; ***confidentiality***

→ ***concerns:*** non-compliance, compromised committees, low awareness in informal and rural work

## REPUTATION AND ANIMAL WELFARE

**Reputation**

→ ***Subramanian Swamy (2016):*** reputation is part of dignity under Art 21; criminal defamation upheld; balance with 19(1)(a)

**Animals and Jallikattu**

→ ***Prevention of Cruelty to Animals Act, 1960; 2011:*** bulls added to prohibited performing animals

→ ***Animal Welfare Board v. A. Nagaraja (2014):*** upheld bans on ***Jallikattu and bullock-cart races***; animal dignity; ***Art 51A(g)*** compassion

→ ***Five Freedoms:*** from hunger and thirst · discomfort · pain, injury, disease · fear and distress · freedom to express normal behaviour

→ ***2016*** Centre notification allowed traditional bull events; ***2017*** Tamil Nadu law; ***Art 29(1)*** culture vs animal welfare

***Animal Welfare Board v. Union of India (2023):*** five-judge bench ***upheld*** State amendments allowing ***Jallikattu (TN), Kambala (Karnataka), bullock-cart races (Maharashtra)*** with safeguards; within State competence; ***did not decide*** whether Jallikattu is an essential part of Tamil culture; no violation of Arts 14, 21, 51A(g).

## CRITICAL ASSESSMENT OF ARTICLE 21

**Strengths**

→ from procedure to ***dignity***

→ ***positive obligations*** on State

→ protects the vulnerable through ***PIL***

→ a ***living document***

**Concerns**

→ ***judicial overreach***

→ weak implementation (resources, governance)

→ balancing liberty and public interest

## ARTICLE 21A: RIGHT TO EDUCATION

**Provision and features**

→ "State shall provide ***free and compulsory education*** to all children aged ***six to fourteen***" as the State may by law determine

→ ***86th Amendment Act, 2002***; operational ***1 April 2010*** with the ***RTE Act, 2009***; needs a statute

→ ***NCRWC*** idea: extend to ***6–18*** for SCs, STs, girls (handout note)

→ ***Art 45*** (DPSP, not justiciable) now directs ***early childhood care and education for under-6s***; 21A covers elementary education

## Recall drill: cover and answer

| | | | |
|---|---|---|---|
| Vishakha 1997 | harassment guidelines; POSH Act 2013 | Internal Committee threshold | 10 or more employees |
| Nagaraja 2014 | Jallikattu ban upheld; biocentric view | 2023 Jallikattu case | State amendments upheld by five judges |
| Art 21A inserted by | 86th Amendment 2002; in force 1 April 2010 | Art 45 now | early childhood care below six |

# ⚖ ARTICLE 22 · ARREST SAFEGUARDS · PREVENTIVE DETENTION ⚖

***PYQ None quoted in the handout · Fundamental Rights 2 handout pp. 19–22***

✎ *Art 22(1)-(2) protect those arrested under ordinary law (grounds, lawyer, 24-hour Magistrate). Art 22(4)-(7) govern preventive detention: Advisory Board after three months, grounds and representation. Know the laws, the 44th Amendment never in force, and the 2026 cases.*

## ORDINARY ARREST: 22(1) AND 22(2)

**Rights**

→ ***information*** of grounds

→ ***lawyer of choice***

→ ***produced before nearest Magistrate within 24 hours*** (excluding travel time)

→ custody beyond 24 hours needs a Magistrate's authority

***ILPM*** — Four rights: **I**nformed · **L**awyer · **P**roduced within 24 hours · **M**agistrate authority beyond. (own mnemonic)

**BNSS**

→ ***s.47*** grounds and bail right · ***s.48*** inform relative or friend · ***s.58*** no detention beyond 24 hours

**1994**
***Joginder Kumar*:** arrest not routine, must be justified

**1997**
***D. K. Basu*:** arrest safeguards

**2014**
***Arnesh Kumar*:** police must justify arrest, esp. offences up to ***seven years***

**2023**
***Pankaj Bansal*:** grounds in ***writing*** under PMLA

***Jaskaran Jeet Singh Deol v. State of Punjab (2026)*** (verify): grounds in ***writing, in a language the accused understands***; violation of 22(1) makes the arrest ***unlawful*** and entitles release; ***re-arrest*** for the same offence needs ***prior judicial approval with reasons***; superior oversight, another officer to investigate, departmental action; ***High Courts may award compensation***.

***Art 22(3) exceptions: enemy aliens*** (not every foreigner) and persons under ***preventive detention laws***.

## PREVENTIVE DETENTION

| | *Punitive* | *Preventive* |
|---|---|---|
| ***Purpose*** | punish after conviction | prevent anticipated harm |
| ***Basis*** | offence proved | material suggesting prejudicial activity |
| ***Procedure*** | after criminal trial | under preventive detention laws |
| ***Safeguards*** | ordinary criminal procedure | special constitutional safeguards |

***Legislative powers***

→ ***Union List Entry 9*:** defence, foreign affairs, security of India
→ ***Concurrent List Entry 3*:** security of a State, public order, essential supplies and services

***Safeguards 22(4)-(7)***

→ ***22(4)*:** no detention beyond ***three months*** without ***Advisory Board*** (persons who are, were or are qualified to be High Court judges) finding sufficient cause
→ ***44th Amendment (1978)*** would cut it to two months but ***was never brought into force***; text still says three
→ ***22(5)*:** grounds communicated ***as soon as may be***; earliest chance of ***representation***; ***22(6)*:** facts may be withheld in ***public interest***
→ ***22(7)*:** Parliament may fix cases beyond three months without a Board, maximum periods, Board procedure

***ABRP*** — Safeguards: **A**dvisory Board (3 months) · **B**asis (grounds) communicated · **R**epresentation · **P**arliament fixes limits. (own mnemonic)

***Issues and NCRWC***

→ no fixed time for giving grounds
→ broad ***public-interest secrecy***
→ Board of merely "qualified" persons
→ subjective satisfaction
→ ***NCRWC*:** only ***sitting High Court judges*** on Boards; cap at ***six months***; fixed time limits for grounds

| *Law* | *Status* |
|---|---|
| Preventive Detention Act, 1950 | expired 1969 |
| MISA, 1971 | repealed 1978 |
| COFEPOSA, 1974 | in force |
| National Security Act, 1980 | in force |
| PBM and Essential Commodities Act, 1980 | in force |

***UAPA*** (s.43D(5) bail limits) and ***PMLA*** raise arrest and bail concerns but are ***not*** ordinary preventive detention laws under 22(4)-(7).

***Judicial safeguards***

→ ***Rekha (2011)*:** not a routine police shortcut; ordinary law first; real need shown even if already in jail

→ ***Ameena Begum (2023)***: ***public order*** differs from law and order; relevant material with ***rational probative value***

→ ***Mulla Afroz v. Union of India (2026)*** (verify): under ***NSA***, a ***police confession alone*** cannot justify detention; detention must address ***future threats***, not punish past offences; ordinary process cannot be bypassed; order quashed, ***₹10 lakh costs*** on Uttar Pradesh

***Critique***

→ liberty lost without conviction
→ arbitrary use against opponents and activists
→ no Art 22(1)-(2) protection
→ Art 21 still applies
→ must not bypass ordinary criminal justice

## Recall drill: cover and answer

| | | | |
|---|---|---|---|
| Ordinary arrest rights | ILPM | Time to Magistrate | 24 hours |
| Arnesh Kumar 2014 | police must justify arrest; up to seven years | Pankaj Bansal 2023 | grounds in writing (PMLA) |
| 22(3) exceptions | enemy aliens, preventive detainees | Advisory Board limit | three months |
| 44th Amendment 1978 changes | two months, never in force | Entry for preventive detention | Union List 9 and Concurrent List 3 |
| NCRWC cap | six months | Laws in force | COFEPOSA, NSA, PBM Act |

# RIGHT AGAINST EXPLOITATION · ARTICLES 23-24 · SEX WORK · CHILD LABOUR

***PYQ None quoted in the handout · Fundamental Rights 2 handout pp. 22-26***

✎ *Arts 23 and 24 bind both the State and private persons and cover citizens and non-citizens. PUDR and Bandhua Mukti Morcha widened forced labour. Buddhadev Karmaskar (2022) gave sex workers equal protection. The 2016 child-labour law bans work under 14, with family and entertainment exceptions.*

## ARTICLE 23

Arts 23-24 are available to ***citizens and non-citizens*** and are enforceable against the ***State and private individuals***.

***Provision***

→ ***23(1)***: bans ***traffic in human beings, begar and similar forced labour***; punishable by law

→ ***23(2)***: State may impose ***compulsory service for public purposes*** without discrimination only on religion, race, caste or class

→ the Article is a ***prohibition***; offences come from ***statutes***

***Judicial interpretation***

→ ***Begar***: unpaid service by coercion; ***forced labour***: work against free will through physical, economic or other pressure

→ ***PUDR v. Union of India (1982)***: pay ***below minimum wage*** can be forced labour; ***economic compulsion*** counts; protects workers against public and private employers

→ ***Bandhua Mukti Morcha (1984)***: bonded labour; State must ***identify, release, rehabilitate***

***Laws***

→ ***Bonded Labour System (Abolition) Act, 1976***

→ ***Immoral Traffic (Prevention) Act (ITPA), 1956***

→ ***BNS, 2023*** on trafficking and exploitation

# TRAFFICKING AND SEX WORK

**ITPA 1956**

→ prohibits ***brothel keeping***, ***living on earnings*** of another's prostitution, ***procuring or inducing***, ***detaining*** persons, ***public solicitation***

→ ***voluntary adult sex work is not itself an offence***; trafficking, exploitation, brothel activity and solicitation remain punishable

→ trafficking (recruitment, transport, harbouring, receipt by prohibited means for exploitation) must be ***distinguished from voluntary adult sex work***

**For legalisation / decriminalisation**

→ better regulation

→ spot trafficking and coercion

→ lower STD and HIV risk

→ labour rights

→ access to justice against violence

→ remove middlemen

→ better living conditions

**Against**

→ may raise demand and trafficking

→ commodification of women

→ ethical concerns

→ prefer rehabilitation and livelihoods

→ poverty limits free choice

→ patriarchal police attitudes

**Models cited**

→ Germany, Denmark, New Zealand use different regulation or decriminalisation models

***Budhadev Karmaskar v. State of West Bengal (2022)***: sex workers are entitled to ***equal protection of law***. Directions: ***police must not interfere*** with consenting adult sex work; ***no physical or verbal abuse***; ***protect identity*** in raids; ***children not separated*** from mothers merely for occupation

# ARTICLE 24: CHILD LABOUR

**Provision**

→ "No child ***below fourteen*** shall be employed in any ***factory or mine*** or other ***hazardous employment***"; applies to public and private employers

**Child and Adolescent Labour (Prohibition and Regulation) Act, 1986**

→ ***original***: banned children only in listed hazardous work; permitted other work under rules: clashed with Art 21A

→ ***2016 amendment***: bans work under ***14 in all occupations***, with exceptions: ***family enterprise*** (non-hazardous, after school or in vacations) and the ***audio-visual entertainment*** industry (artists in ads, films, TV, sports; ***not circus***)

→ new category ***Adolescents (14–18)***: barred from ***mines, inflammable substances or explosives, specified hazardous processes***

**Issues**

→ ***family exception*** hard to monitor

→ conflict with ***education*** where families need earnings

→ adolescents exposed to dangerous work outside the schedule

→ ***poverty***: ban alone fails

→ enforcement: inspections, ***rehabilitation and schooling*** of rescued children

***21A vs 24***: 21A gives the right to ***education (6–14)***; 24 protects against ***hazardous work (under 14)***; the 2016 Act extends the statutory ban to all occupations with exceptions.

## Recall drill: cover and answer

| | | | |
|---|---|---|---|
| Arts 23 and 24 apply against | State and private persons | PUDR 1982 | below minimum wage can be forced labour |
| Bandhua Mukti Morcha 1984 | bonded labour release and rehabilitation | Bonded Labour Act year | 1976 |
| ITPA year | 1956 | Is voluntary adult sex work an offence? | not itself, under ITPA |
| Buddhadev Karmaskar 2022 | equal protection, dignity for sex workers | Adolescent age band | 14 to 18 |
| Child labour exceptions 2016 | family enterprise and audio-visual entertainment (not circus) | | |

# ARTICLES 25-26 · CONVERSION · ESSENTIAL RELIGIOUS PRACTICES · TEMPLES

PYQ None quoted in the handout · Fundamental Rights 2 handout pp. 26-30

✎ *Art 25 protects conscience and the right to profess, practise and propagate, but propagation is not a right to convert (Stainislaus). Art 26 protects denominations. Courts use the Essential Religious Practices test, with Santhara, Sabarimala and temple control as live examples.*

## FOUR ARTICLES AT A GLANCE

| Art | Protects |
|---|---|
| 25 | freedom of conscience; ***profess, practise, propagate*** religion |
| 26 | freedom to ***manage religious affairs*** |
| 27 | no tax for promoting a particular religion |
| 28 | religious instruction and worship in educational institutions |

## ARTICLE 25 AND CONVERSION

**Art 25**

→ subject to ***public order, morality, health*** and other Fundamental Rights

→ State may regulate ***economic, financial, political and other secular*** activity linked to religion and make ***welfare and reform*** laws

***Rev. Stainislaus v. State of Madhya Pradesh (1977):*** right to ***propagate*** does ***not*** include a Fundamental Right to ***convert another person***; upheld laws against conversion by ***force, fraud or inducement.***

**Criticisms**

→ propagation becomes a ***hollow right***

→ religion is a matter of ***conscience***

→ ***allurement*** is hard to define

→ ***burden of proof*** on voluntariness

**State laws**

→ several States ban conversion by force, fraud, coercion, some inducement; some need ***notice or declaration***

→ ***Gujarat Freedom of Religion (Amendment) Act, 2021:*** linked conversion with interfaith marriage; reporting and investigation

→ ***Issue:*** State may stop forced conversion but not intrude on ***conscience, privacy, choice***

## ARTICLE 26 AND ESSENTIAL RELIGIOUS PRACTICES

**Art 26**

→ denominations may ***establish and maintain institutions***, ***manage religious affairs***, and ***own and administer property*** as per law (26(c), (d))

**ERP doctrine (Shirur Mutt, 1954)**

→ is it ***essential or integral*** to the religion? within protected religious affairs? subject to ***public order, morality, health, other rights***? religious or really a ***secular*** activity the State can regulate?

**EPSR** — ERP test: **E**ssential part? · **P**rotected sphere? · **S**ubject to limits? · **R**eligious or secular? (own mnemonic)

**Issues with ERP**

→ courts lack ***theological competence***

→ may ***privilege*** some practices

→ ***black-and-white*** answers on diverse beliefs

→ reform vs autonomy; balance religious freedom, equality, constitutional morality, reform

## LIVE EXAMPLES

**Santhara (Nikhil Soni, 2015)**

→ ***Rajasthan HC*** declared the Jain fast-to-death unlawful, not an ERP; supporters: spiritual discipline, ***not suicide***, autonomy

→ ***SC stayed*** the judgment in 2015, so the HC ban is ***not operative***

**2016**
***Haji Ali Dargah:*** Bombay HC upheld women's right to enter the inner sanctum

**2016**
***Shani Shingnapur:*** Bombay HC stressed women's access; women entered

**2018**
***Sabarimala:*** SC ***4:1*** held exclusion of women of menstruating age unconstitutional

**2019**
review: larger questions on religious freedom and ERP ***referred to a larger Bench***

**2026**
***nine-judge bench*** heard the reference; ***reserved judgment May 2026*** (verify)

**Four competing dimensions**

→ individual vs State

→ individual vs individual

→ group vs State

→ State regulation in public interest

**Loudspeakers and Azaan (Allahabad HC, 2020)**

→ Azaan is religiously significant but ***loudspeakers are not essential***; Azaan by human voice continues; loudspeakers can be ***regulated for noise pollution***

## RELIGIOUS PROPERTY AND TEMPLE MANAGEMENT

**Shirur Mutt principles**

→ ***religious autonomy*** in protected affairs

→ State may regulate ***economic, financial, administrative*** activity

→ donations, accounts, property can be regulated

→ but no excessive interference (judicial review)

| For regulation | Against excess regulation |
|---|---|
| financial transparency and accountability | weakens religious autonomy |
| stops misuse of donations and property | bureaucratisation, political interference |
| protects devotees, promotes reform | excessive State control |

**Models and cases**

→ ***SGPC:*** historic Gurdwaras under the ***Sikh Gurdwaras Act, 1925***, with elected community participation

→ ***Char Dham Devasthanam Act, 2019*** (Uttarakhand): board over major shrines; ***repealed 2021*** after opposition

→ ***Sree Padmanabhaswamy (2020):*** SC upheld ***Travancore Royal Family's*** traditional management with court-set arrangement

→ temples with different arrangements: Tirupati, Jagannath, Vaishno Devi, Badrinath, Kedarnath

**Property**

→ ***26(c), (d)*** own and administer property per law

→ ***Art 300A:*** no deprivation of property except by authority of law

→ religious property is ***not immune*** from lawful acquisition for public purposes, but must respect religious character

## Recall drill: cover and answer

| | | | |
|---|---|---|---|
| Stainislaus 1977 | propagation is not a right to convert | ERP doctrine origin | Shirur Mutt 1954 |
| Santhara 2015 | Rajasthan HC banned; SC stayed | Sabarimala 2018 | 4:1, exclusion unconstitutional |
| Sabarimala reference | nine judges, reserved May 2026 (verify) | Loudspeaker ruling 2020 | not essential to Azaan; regulate noise |
| SGPC law | Sikh Gurdwaras Act 1925 | Char Dham Act | 2019, repealed 2021 |
| Property protection article | Art 300A | | |

# ARTICLES 27-28 · SECULARISM · COMMUNALISM

PYQ None quoted in the handout · Fundamental Rights 2 handout pp. 30-33

✎ *Art 27 bars taxes that promote a religion; Art 28 bars religious instruction in wholly State-funded schools. India follows principled distance, not strict separation. Communalism, narrow secularism and weak institutions threaten it; the cure is acceptance, scientific temper, rule of law and inclusive development.*

## ARTICLES 27 AND 28

**Art 27**

→ no one compelled to pay ***taxes*** whose proceeds go to promote a ***particular religion***

→ a ***regulatory fee*** for administering religious institutions is not automatically barred

| ***Institution (Art 28)*** | ***Religious instruction*** |
|---|---|
| ***wholly State-funded*** | prohibited, subject to 28(2) |
| ***State-administered but set up under a religious endowment or trust*** | permitted where the trust requires it |
| ***State-aided or recognised*** | permitted, but ***no compulsion*** without prescribed consent (28(3)) |

**Education vs instruction**

→ ***Aruna Roy (2002):*** ***religious education*** (about religions, philosophy, ethics) is not prohibited ***religious instruction*** (promoting adherence to one religion)

→ ***D. A. V. College (1971):*** teaching the life and teachings of ***Guru Nanak*** is not automatically prohibited instruction

**Against compulsory prayers**

→ freedom of conscience

→ Art 28

→ scientific temper

**For**

→ ethical values

→ Indian culture

→ value-based education

***Way forward:*** inclusive, ***voluntary***, value-based practice without imposing one community's beliefs.

# SECULARISM

**Meaning**

→ ***George Jacob Holyoake*** popularised the term

→ State not controlled by religion · freedom to follow, change or not follow a religion · no discrimination on religion

**Indian model**

→ "***Secular***" added to the Preamble by the ***42nd Amendment, 1976***; spirit present from the start

→ not strict separation: ***Principled Distance*** (***Rajeev Bhargava***): neither hostile to nor merged with religion; engages for welfare, equality, reform

→ features: ***no theocracy*** · religious freedom · equality of religions · ***principled intervention*** · protection of diversity

→ basis: ***Preamble, Arts 14-16, 25-28, 29-30, SIA***

**Cases**

→ ***S. R. Bommai (1994):*** secularism is part of the ***Basic Structure***

→ ***Balram Singh (2024):*** rejected challenges to "***Socialist***" ***and*** "***Secular***" in the Preamble

| Country | Model |
|---|---|
| India | principled distance, equal freedom, intervention for reform |
| USA | constitutional ***separation of Church and State*** |
| France | ***laïcité***: secular public institutions, limits on public religious display (response to Church power) |
| UK | ***established Church*** with broad religious freedom |

**Why secularism matters**

→ ***J. S. Mill:*** harm principle, individual freedom

→ ***John Rawls:*** veil of ignorance, fairness

→ ***peace and harmony***

→ ***scientific temper and reform***

→ ***democracy***: equal participation

***IFPMD*** — Importance: **I**ndividual freedom (Mill) · **F**airness (Rawls) · **P**eace · **M**odernity · **D**emocracy. (own mnemonic)

# COMMUNALISM

**Meaning and types**

→ using religious identity to create ***divisions and competing political interests***; treats communities as ***homogeneous and conflicting***

→ ***majority communalism*** (may pose as nationalism) and ***minority communalism*** (separatism, polarisation); both threaten secularism and integration

**Challenges to secularism**

→ ***narrow conception:*** State-centric, tolerance not acceptance, ignores intra-religious (caste, sect) divides

→ ***extreme religiosity and polarisation:*** ritual and costume differences; mobilisation on religious identity; demonisation, mob violence

→ ***failure of institutions:*** family, education, political parties

→ ***weak law:*** no single Central law on communal violence, prevention, rehabilitation, compensation

→ ***developmental imbalances:*** insecurity from unequal opportunity

***NEFLD*** — Challenges: **N**arrow concept · **E**xtreme religiosity · **F**ailing institutions · **L**aw gaps · **D**evelopment gaps. (own mnemonic)

***Sachar Committee (2006):*** documented Muslims' disadvantages in ***education, employment, credit, public-sector representation***; urged equitable development. ***Amartya Sen:*** people have ***multiple identities***; a ***singular identity*** breeds hostility and blocks cooperation.

**Measures**

→ ***acceptance over tolerance***
→ ***scientific temper*** and constitutional morality
→ ***rule of law*** against violence and discrimination
→ ***inclusive development***
→ ***constructive social work*** like Gandhi's

## Recall drill: cover and answer

| | | | |
|---|---|---|---|
| Art 27 | no tax to promote a religion | Art 28 fully State-funded | no religious instruction |
| Aruna Roy 2002 | religious education is not religious instruction | Who popularised secularism | George Jacob Holyoake |
| "Secular" added by | 42nd Amendment 1976 | Indian secularism term | principled distance, Rajeev Bhargava |
| Bommai 1994 | secularism is basic structure | Balram Singh 2024 | Socialist and Secular words upheld |
| Sachar Committee | 2006 | Sen on identity | multiple identities |

# ARTICLES 29-30 · MINORITY EDUCATION · RTE · AMU

*PYQ None quoted in the handout · Fundamental Rights 2 handout pp. 34-38*

✎ *Art 29(1) protects any section's culture (not only minorities); 29(2) bars discrimination in admission. Art 30 lets minorities run their institutions but not maladminister. Minority status is State-wise (TMA Pai). Pramati exempted minority schools from RTE; AMU (2024) overruled Azeez Basha.*

## ARTICLES 29 AND 30

**Safeguards for minorities**

→ ***common domain:*** Preamble, Arts 14-16, 25-28, 46, Fundamental Duties
→ ***special domain:*** Arts ***29, 30***; ***15(5)*** excludes Art 30(1) minority institutions from its special admission rules

| Clause | Content |
|---|---|
| ***29(1)*** | any section of citizens with a distinct ***language, script or culture*** may conserve it; ***not only minorities*** |
| ***29(2)*** | no denial of admission to State-maintained or aided institutions on ***religion, race, caste, language only*** |
| ***30(1)*** | religious and linguistic minorities may ***establish and administer*** educational institutions of choice |
| ***30(1A)*** | protects the right on ***compulsory acquisition*** of property |
| ***30(2)*** | no discrimination in ***State aid*** because of minority management |

***Right to administer is not right to maladminister.*** State may regulate standards, qualifications, transparency.

## WHO IS A MINORITY

***T. M. A. Pai Foundation (2002):*** for Art 30, minority status (religious and linguistic) is determined ***State-wise***, not nationally. E.g. Hindus are a religious minority in ***Punjab, Nagaland, Mizoram***. The ***Centre's notified list*** is statutory, for schemes and institutions.

→ Muslims · Christians · Sikhs · Buddhists · Zoroastrians (Parsis) · ***Jains (notified 2014)***

**Six notified religious minorities**

**MCSBZJ** – Six minorities: **M**uslims · **C**hristians · **S**ikhs · **B**uddhists · **Z**oroastrians · **J**ains. (own mnemonic)

**Linguistic minorities**

→ ***Art 347:*** President may direct recognition of a language on substantial demand
→ ***Art 350A: mother-tongue instruction*** at primary stage
→ ***Art 350B: Special Officer*** appointed by the President; report laid before Parliament and sent to States

**Institutions**

→ ***NCM:*** statutory, ***National Commission for Minorities Act, 1992***
→ ***NCMEI: NCMEI Act, 2004***, on minority status and educational rights

## REGULATION AND RTE

**29(2) vs 30(1)**

→ aided minority institutions may give ***reasonable preference*** to their community but cannot exclude all others

***Sk. Md. Rafique (2020):*** West Bengal Madrasah Service Commission Act: teacher selection through a statutory commission is ***not automatically unconstitutional*** for minority institutions; regulation must not extinguish Art 30 rights.

***Pramati Educational and Cultural Trust (2014); RTE s.12(1)(c)*** (25% entry seats for weaker sections) cannot be applied to minority institutions in a way that impairs Art 30(1); ***aided and unaided minority institutions exempted. Critics:*** RTE aims at ***social inclusion***; exemption reduces opportunity

***Anjuman Ishaat-e-Taleem Trust (Sept 2025)*** (verify): SC doubted the ***blanket exemption***; read ***Arts 21A and 30 harmoniously***; RTE need not destroy minority character; called for ***larger Bench***. ***Pramati stays binding*** until altered.

## ALIGARH MUSLIM UNIVERSITY

**1877**
Muhammadan Anglo-Oriental College (Sir Syed Ahmad Khan); ***AMU Act, 1920*** makes it a university

**1967**
***S. Azeez Basha:*** not a minority institution because ***established by statute***

**1981**
AMU Amendment Act recognises the Muslim community's role

**2005-06**
Allahabad HC rejected the minority-based reservation

**2019**
SC refers issue to ***seven judges***

**8 Nov 2024**
***AMU v. Naresh Agarwal:*** 4:3; test = ***origin, purpose, community role***; pre-1950 institutions can claim Art 30. ***Azeez Basha overruled*** but AMU's status ***left to a regular Bench***

## MINORITY WELFARE SCHEMES AND SIGNIFICANCE

**Against minority-specific schemes**

→ Art 15(1) religion-only basis
→ welfare should follow deprivation
→ other protections exist

**For**

→ socio-economic disadvantage
→ ***Art 14*** reasonable classification
→ ***Art 46***
→ national integration

Minority schemes are ***not automatically unconstitutional***; validity depends on legal basis, objective, eligibility, equality. ***Significance of 29-30:*** identity, equality, minority autonomy, inclusive education, integration.

## Recall drill: cover and answer

| | | | |
|---|---|---|---|
| 29(1) holders | any section of citizens, not only minorities | 29(2) protects against | discrimination in admission |
| Minority unit | State-wise, TMA Pai 2002 | Jains notified | 2014 |
| Art 350B | Special Officer for linguistic minorities | NCM Act | 1992 |
| Pramati 2014 | minority schools exempt from RTE | 2025 doubt on Pramati | Anjuman Ishaat-e-Taleem, larger Bench (verify) |
| Azeez Basha 1967 | AMU not minority; overruled 2024 | AMU 2024 bench | seven judges, 4:3, test: origin, purpose, community role |

# WAQF (AMENDMENT) ACT, 2025 · NAZUL LAND

***PYQ None quoted in the handout · Fundamental Rights 2 handout pp. 38-39***

*The 2025 amendment changes Waqf registration, boards and dispute handling. The SC in September 2025 refused a full stay but paused the five-year Muslim requirement, executive decisions on government-land disputes, and capped non-Muslim members. The final ruling on validity is pending. Nazul land is government land under lease.*

## BACKGROUND AND KEY CHANGES

***Waqf***

→ ***permanent dedication of property*** for religious, charitable or other purposes under Muslim law: mosques, dargahs, graveyards, schools

→ ***Waqf Act, 1995*** was the main framework; the ***Waqf (Amendment) Act, 2025*** (also linked to the ***UMEED*** framework) changes registration, management and oversight

| ***Provision*** | ***Change*** |
|---|---|
| ***Non-Muslim representation*** | non-Muslim members in the ***Central Waqf Council*** and ***State Waqf Boards*** |
| ***Waqf by user*** | restricts ***future*** recognition based only on long religious use; protects existing registered Waqfs |
| ***Five-year requirement*** | person creating a Waqf must have professed ***Islam for at least five years*** |
| ***Government oversight*** | government-designated officer in disputes over ***government property claimed as Waqf*** |

***For***

→ ***transparency*** and accountability

→ ***property protection*** against fraudulent claims

→ ***modernisation*** of records

→ better supervision

***Against***

→ ***Art 26*** autonomy hit by non-Muslim members

→ ***waqf by user*** hurts undocumented religious properties

→ five-year rule intrudes on religious freedom

→ ***separation of powers:*** executive deciding property rights

***Constitutional questions***

→ ***Art 14*** equality · ***Art 25*** (five-year rule) · ***Art 26*** (denominational administration) · ***separation of powers***

## SUPREME COURT INTERIM ORDER, SEPTEMBER 2025

SC ***refused to stay the whole Act*** but suspended parts (verify against the order):

**Three directions**

→ ***five-year practising Muslim rule:*** stayed until States set a ***mechanism*** to decide who qualifies

→ ***government property disputes:*** stayed executive power to change Waqf status and ***revenue records*** before adjudication; disputes go to the ***Waqf Tribunal*** and courts

→ ***non-Muslim members:*** not suspended but capped at ***four in the Central Waqf Council*** and ***three in State Waqf Boards***

**FGN** — Interim order: **F**ive-year rule paused · **G**overnment-land disputes to tribunal · **N**on-Muslim members capped (4 and 3). (own mnemonic)

Interim relief is ***not*** a final ruling on validity; keep the two apart in answers.

## NAZUL LAND

**What it is**

→ government-owned land leasable to persons or institutions; government keeps ***ownership***, others hold ***leasehold***; uses: housing, schools, hospitals

→ ***leasehold:*** right to use for a period · ***freehold:*** ownership

**Link to Waqf**

→ dispute: can ***long religious use*** create Waqf status over land claimed by government? The interim order stops executives from altering disputed status ***before proper adjudication***

→ ***Core issue:*** balance protection of religious endowments, property rights, transparency and lawful oversight

## Recall drill: cover and answer

| | | | |
|---|---|---|---|
| Waqf Act original | 1995 | Amendment year | 2025, UMEED framework |
| Waqf by user change | restricts future recognition by long use alone | Five-year rule | must profess Islam five years; stayed pending mechanism |
| Non-Muslim caps | four in Central Council, three in State Boards | Where disputes go | Waqf Tribunal and courts |
| Nazul land | government-owned, leased out | | |

# ⚖ DPSP · CLASSIFICATION · FUNDAMENTAL RIGHTS VS DPSP ⚖

*PYQ None quoted in the handout · DPSP and Fundamental Duties handout pp. 2-3*

✎ *DPSP (Part IV, Arts 36-51) aim at a welfare State and are not enforceable, yet courts use them to read Fundamental Rights. The case chain: Champakam (FR wins) to*

*Golaknath to Kesavananda to Minerva Mills (balance is Basic Structure). Think two wheels of one chariot.*

## WHAT AND WHY NON-JUSTICIABLE

**DPSP**

→ ***Part IV, Arts 36–51***; aim: a ***Welfare State*** built on social, economic and political justice

→ ***why non-justiciable:*** ***financial limits*** · ***administrative capacity*** · ***social conditions*** (e.g. UCC needs care) · ***nature*** (broad aims like international peace)

→ ***not legally irrelevant:*** courts use them to ***interpret Fundamental Rights*** and test the purpose of laws

## CLASSIFICATION (ACADEMIC, NOT IN THE TEXT)

| Type | Articles | Aim |
|---|---|---|
| ***Socialist*** | 38, 39, 39A, 41, 42, 43, 43A | social and economic justice, welfare, labour |
| ***Gandhian*** | 40, 43, 43B, 46, 47, 48 | village self-government, cottage industries, weaker sections, rural welfare |
| ***Liberal-Intellectual*** | 44, 45, 48A, 49, 50, 51 | civil reform, education, environment, heritage, judicial independence, peace |

Some Articles belong to more than one category.

**SGL** – Three types: **S**ocialist · **G**andhian · **L**iberal-intellectual. (own mnemonic)

## FUNDAMENTAL RIGHTS VS DPSP

**1951**
***State of Madras v. Champakam Dorairajan:*** FRs ***prevail*** over DPSP in direct conflict

**1967**
***Golaknath:*** Parliament ***cannot amend*** FRs, hence cannot do so to implement DPSP

**1973**
***Kesavananda Bharati:*** Parliament ***can amend FRs*** to implement DPSP but ***not violate Basic Structure***

**1980**
***Minerva Mills:*** ***harmony and balance*** between FR and DPSP is part of the ***Basic Structure***; they are ***complementary***

**CGKM** – Case order: **C**hampakam → **G**olaknath → **K**esavananda → **M**inerva Mills. (own mnemonic)

**Present position**

→ Parliament may amend FRs to implement DPSP, subject to the Basic Structure

→ courts use ***harmonious construction*** of Parts III and IV

→ DPSP help read ***Art 21***

→ ***Art 31C*** specially protects qualifying laws under ***39(b) and 39(c)***

***Two wheels of a chariot:*** both are needed for the Constitution's goal of social revolution.

## Recall drill: cover and answer

| | | | |
|---|---|---|---|
| DPSP articles | 36–51 in Part IV | Champakam 1951 | FR prevails over DPSP |
| Golaknath 1967 | Parliament cannot amend FRs | Kesavananda 1973 | can amend FR for DPSP within Basic Structure |
| Minerva Mills 1980 | balance of FR and DPSP is Basic Structure | Art 31C protects | laws implementing 39(b) and 39(c) |

# ⚖ ARTICLE 39(b)(c) · RIGHT TO PROPERTY · EMINENT DOMAIN · NINE-JUDGE VERDICT 2024 ⚖

PYQ None quoted in the handout · DPSP and Fundamental Duties handout pp. 3–4

✎ *Art 39(b) wants resources distributed for the common good; 39(c) stops concentration of wealth. Property is now only a constitutional right (Art 300A). The 2024 nine-judge bench held not every private resource is a community resource, but kept Art 31C alive.*

## ARTICLE 39(b) AND (c)

| | |
|---|---|
| 39(b) | → ownership and control of the ***material resources of the community*** distributed to serve the ***common good*** |
| 39(c) | → economic system should not cause ***concentration of wealth and means of production*** to the common detriment |

## RIGHT TO PROPERTY

| | |
|---|---|
| Status | → earlier a Fundamental Right under ***Arts 19(1)(f) and 31***; the ***44th Amendment, 1978*** removed that status<br>→ now a ***constitutional right*** under ***Art 300A***: no deprivation of property except by ***authority of law*** |
| Features | → ***authority of law:*** no deprivation by mere executive order<br>→ ***public purpose*** for compulsory acquisition<br>→ ***compensation:*** no guarantee of market value in every case, but still open to scrutiny<br>→ ***judicial review*** available |
| Eminent domain | → State's power to acquire private property for a ***public purpose under valid law***; issues: private vs public interest, fair compensation and rehabilitation, protection from arbitrary acquisition |

***Kolkata Municipal Corporation v. Bimal Kumar Shah (2024):*** ***seven procedural safeguards*** under Art 300A: ***notice*** · ***hearing*** · ***reasoned decision*** · ***public purpose*** · ***fair compensation*** · ***timely process*** · ***conclusion of proceedings***. Art 300A protects more than the bare need for a law.

**NHR-PCTC** — Seven safeguards: **N**otice · **H**earing · **R**easons · **P**ublic purpose · **C**ompensation · **T**imely · **C**onclusion. (own mnemonic)

## PROPERTY OWNERS ASSOCIATION v. STATE OF MAHARASHTRA (2024)

| | |
|---|---|
| Case | → provisions of the ***Maharashtra Housing and Area Development Act, 1976*** on acquiring properties for redevelopment; question: is ***private property*** a ***material resource of the community*** under 39(b)?<br>→ ***5 November 2024***, ***nine-judge*** bench, ***7:2*** |
| Holdings | → ***not every*** private resource is a community resource, but ***some may be***<br>→ ***no automatic State claim*** to all private property<br>→ ***factors: nature and importance*** · ***community welfare impact*** · ***scarcity*** · ***concentration*** in private hands<br>→ Constitution ***prescribes no single economic model*** |

→ ***Art 31C continues*** to shield qualifying 39(b)/(c) laws from ***Art 14 and 19*** challenges, but courts still check whether a law truly qualifies

**NCSC** — Resource test: **N**ature · **C**ommunity welfare · **S**carcity · **C**oncentration. (own mnemonic)

***Significance:*** protects property from blanket classification, still allows genuine redistribution, gives clear criteria, a balanced model. Public welfare cannot justify treating every private resource as community property.

## Recall drill: cover and answer

| | | | |
|---|---|---|---|
| 39(b) | material resources distributed for common good | 39(c) | no concentration of wealth |
| Property right now | Art 300A, after 44th Amendment 1978 | Bimal Kumar Shah 2024 | seven procedural safeguards |
| Property Owners Association 2024 | nine judges, 7:2, 5 Nov 2024 | Resource test | NCSC |
| Art 31C status | still operates | | |

# ⚖ UNIFORM CIVIL CODE · ARTICLE 44 · PERSONAL LAWS · UTTARAKHAND ⚖

***PYQ None quoted in the handout · DPSP and Fundamental Duties handout pp. 4–7***

✎ *Art 44 asks the State to work toward a Uniform Civil Code. India has separate personal laws; Shah Bano, Danial Latifi, Shayara Bano and Abdul Samad are the milestones. The Law Commission (2018) favoured reform over uniformity. Uttarakhand began a State UCC on 27 Jan 2025.*

## ARTICLE 44 AND PERSONAL LAWS

**UCC**

→ ***Art 44*** directs the State to ***endeavour*** to secure a UCC; common civil law on ***marriage, divorce, maintenance, adoption, succession, inheritance*** irrespective of religion

→ debate: ***equality, religious freedom, gender justice, diversity***

| ***Community*** | ***Main laws*** |
|---|---|
| ***Hindus, Buddhists, Jains, Sikhs*** | Hindu Marriage Act 1955; Hindu Succession Act 1956; Hindu Adoptions and Maintenance Act 1956; Hindu Minority and Guardianship Act 1956 |
| ***Muslims*** | Muslim Personal Law (Shariat) Application Act 1937; Dissolution of Muslim Marriages Act 1939 |
| ***Christians*** | Indian Christian Marriage Act 1872; Indian Divorce Act 1869 |
| ***Parsis*** | Parsi Marriage and Divorce Act 1936 |
| ***Religion-neutral*** | ***Special Marriage Act, 1954***: civil marriage without conversion; but ***public notice*** may expose couples to family pressure |

## JUDICIAL MILESTONES

| 1985 | 1986 | 2001 | 2017 | 2019 | 2024 |
|---|---|---|---|---|---|
| ***Shah Bano:*** ***CrPC s.125*** is religion-neutral; divorced Muslim woman can claim maintenance; ***mahr*** does not end the duty | ***Muslim Women (Protection of Rights on Divorce) Act:*** separate framework, seen as a response to Shah Bano | ***Danial Latifi:*** upheld the 1986 Act; husband must make ***reasonable and fair provision*** within Iddat, not limited to needs in Iddat | ***Shayara Bano:*** ***3:2***, instant Triple Talaq (***Talaq-e-Biddat***) set aside | ***Muslim Women (Protection of Rights on Marriage) Act:*** instant talaq void and illegal, offence up to ***3 years***; critics: criminalisation, family finances, abandonment not covered | ***Mohd. Abdul Samad:*** divorced Muslim women can claim maintenance under ***BNSS s. 144*** as well as the 1986 Act |

**Polygamy**

→ Hindu law bars a second marriage in the spouse's lifetime; traditional Muslim law allows up to ***four wives*** subject to conditions

→ ***Sarla Mudgal (1995):*** a Hindu husband cannot escape the bigamy law by ***converting to Islam*** without dissolving the first marriage

## FOR AND AGAINST

**For UCC**

→ ***gender justice*** (patriarchal laws)
→ ***national integration***
→ ***secularism***
→ ***simpler laws***
→ ***equality before law***

**Against**

→ religious and cultural ***diversity***
→ ***minority fears*** of majority imposition
→ ***Arts 25 and 26***
→ hard to frame common rules
→ ***selective reform*** while other DPSPs lag
→ ***uniformity is not equality***

***GNSSE*** — For UCC: **G**ender justice · **N**ational integration · **S**ecularism · **S**implification · **E**quality. (own mnemonic)

***21st Law Commission Consultation Paper (2018):*** a UCC was ***neither necessary nor desirable at that stage***; remove discrimination within each family law, gradual reform by consultation, don't treat diversity as the problem.

**Uttarakhand UCC**

→ ***UCC of Uttarakhand, 2024*** in force ***27 January 2025***: first State in independent India with a comprehensive State UCC
→ common rules on ***marriage, divorce, maintenance, succession***; compulsory ***marriage registration***; ***polygamy prohibited***; ***live-in relationships*** registered
→ ***2026:*** UCC Amendment Ordinance, then ***UCC Amendment Act, 2026*** (verify)
→ ***concerns:*** privacy of live-ins, State oversight, exemptions vs uniformity, implementation

**Way forward**

→ ***gradual reform*** through consultation
→ ***gender justice*** in marriage, divorce, maintenance, inheritance
→ ***optional religion-neutral civil framework***
→ ***stakeholder consultation***
→ ***constitutional balance***: aim is ***equality and gender justice, not uniformity for its own sake***

## Recall drill: cover and answer

| | | | |
|---|---|---|---|
| Art 44 | State to endeavour for a UCC | Special Marriage Act | 1954, civil marriage |
| Shah Bano 1985 | CrPC 125 maintenance for divorced Muslim woman | Danial Latifi 2001 | 1986 Act upheld; fair provision |
| Shayara Bano 2017 | 3:2, instant triple talaq set aside | 2019 Act punishment | up to three years |
| Abdul Samad 2024 | maintenance under BNSS 144 | Sarla Mudgal 1995 | conversion cannot escape bigamy law |
| Law Commission 2018 | UCC neither necessary nor desirable then | Uttarakhand UCC in force | 27 January 2025 |

# DPSP SIGNIFICANCE AND CRITICISM · FUNDAMENTAL DUTIES · ARTICLE 51A

PYQ None quoted in the handout · DPSP and Fundamental Duties handout pp. 7–10

✎ *DPSP give a welfare yardstick but are weak without political will ("pious superfluities"). Fundamental Duties (Part IVA, Art 51A) came with the 42nd Amendment on Swaran Singh's advice; there are 11. Duties are non-justiciable but supported by laws and cases (Bijoe Emmanuel, M. C. Mehta, anthem orders).*

## DPSP: SIGNIFICANCE AND CRITICISM

**Significance**

→ ***welfare State*** commitment
→ common ***policy direction*** across governments
→ ***complement FRs*** (liberty vs social conditions)
→ ***yardstick*** to judge governments
→ more relevant with inequality, environment, jobs

**Criticism**

→ ***non-justiciable***: "***pious superfluities***", an uncashable cheque
→ ***money and capacity*** limits
→ ***unsystematic*** mix of broad aims and specifics (prohibition, cattle protection)
→ ***vague*** but flexible
→ ***liberty vs welfare*** tension: Art 47, 48, 44
→ ***uneven implementation***: weak delivery, not just missing laws

## FUNDAMENTAL DUTIES

**Basics**

→ ***Part IVA, Art 51A***; added by the ***42nd Amendment, 1976*** on the ***Swaran Singh Committee***; the ***86th Amendment, 2002*** added one, so ***11*** duties
→ ***rationale***: reduce indifference to nation-building, balance freedom with responsibility, encourage participation

| *Right* | *Linked duty* |
|---|---|
| Art 15 (no discrimination) | ***51A(e)*** promote harmony, renounce practices derogatory to women |
| Art 19 (speech) | ***51A(h)*** scientific temper and spirit of inquiry |
| Art 21 (life) | ***51A(g)*** protect environment and living creatures |
| Art 21A (education) | ***51A(k)*** parents to provide educational opportunities, ages 6–14 |

**Gandhi:** rights and duties are closely linked; stress performance of duties. Parts III (rights, against State), IV (directive to State), IVA (citizens) together support dignity and collective welfare.

**Cases**

→ **Bijoe Emmanuel (1986):** Jehovah's Witness students stood respectfully but refused to sing the **National Anthem**; protected by **19(1)(a) and 25**

→ **M. C. Mehta:** used **51A(g)**; environmental education in institutions

→ **Vellore (1996):** precautionary, polluter pays, sustainable development; Arts 21, **48A**, 51A(g)

→ **Shyam Narayan Chouksey: 2016** anthem in cinemas ordered; **2018** made **optional**; the **Prevention of Insults to National Honour Act, 1971** penalises insult, **no general duty to sing**

| Duty | Supporting law |
|---|---|
| **51A(a)** flag and anthem | Prevention of Insults to National Honour Act 1971; Flag Code |
| **51A(g)** environment | Environment (Protection) Act 1986; Wildlife (Protection) Act 1972 |
| **51A(f)** heritage | Ancient Monuments and Archaeological Sites and Remains Act 1958 |
| **51A(e)** women's dignity | Dowry Prohibition Act 1961; PWDV Act 2005 |
| **51A(i)** public property | Prevention of Damage to Public Property Act 1984 |
| **51A(k)** education | RTE Act 2009 |

Not every breach of a duty is automatically a crime.

**Committees**

→ **Justice J. S. Verma Committee (1999):** teach duties in schools, public awareness, teacher training, identify existing laws

→ **NCRWC (2002):** duty to **vote**, **pay taxes**, **responsible parenthood**, civic education; **recommendations only**, not all in Art 51A

**For more stress on duties**

→ responsible citizenship

→ unity and welfare

→ protect environment and property

→ democratic culture

**For prioritising rights**

→ rights enforceable, duties not

→ risk of weakening protection

→ duties can justify curbs on dissent

→ State must first meet its own obligations

**Balance:** rights and duties are complementary, not competing. **Way forward:** civic education, awareness, specific laws subject to FRs, responsible governance, participation.

## Recall drill: cover and answer

| | | | |
|---|---|---|---|
| DPSP criticism phrase | pious superfluities | Art 51A in | Part IVA |
| Added by | 42nd Amendment 1976, Swaran Singh Committee | Number of duties | 11 after 86th Amendment 2002 |
| Bijoe Emmanuel 1986 | cannot force anthem singing against conscience | Anthem in cinemas | 2016 ordered, 2018 optional |
| Verma Committee | 1999, duties in education | NCRWC 2002 ideas | voting, taxes, responsible parenthood |

# CURRENT AFFAIRS

## Polity · September 2026

**14 items**

*Built only from the Sarrthi IAS monthly current-affairs magazine.*
*Red tag = Prelims + Mains, blue = Mains, green = Prelims.*
*Right-hand column is blank for your own notes.*

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# September 2026

## Polity

## 10.4 Hindi Diwas (14 September)

PRELIMS

**What:** Marks adoption of Hindi as official language after the Munshi-Ayyangar Formula.

**POINTS**

→ Hindi in Devanagari is Official Language of the Union; the Constitution names no national language. English allowed for 15 years with Parliament empowered to extend; Official Languages Act 1963 continued English beyond 1965; 1967 amendment allowed it indefinitely.

## 1.2 Defining Urban Areas in India

PRELIMS + MAINS

**What:** MoHUA told a parliamentary panel that census-town criteria do not capture the scale of urbanisation. The Registrar General of India will keep the existing framework for Census 2027.

**Statutory towns**

→ notified under law by the State/UT, irrespective of census thresholds; they have municipalities, corporations or cantonment boards.

**Measures differ**

→ national definition 31.2% (2011), UN estimate 35.7% (2025); Agglomeration Index 55.3% (2010) lived in urban-like areas; DEGURBA (UN-endorsed, 1 km2 grids, rural-urban continuum).

**Limits**

→ male-only occupational test excludes women; large revenue-village boundaries lower density; uniform thresholds miss small hill and north-eastern settlements; no commuting or functional linkage test.

**Effects**

→ hidden urbanisation; governance mismatch (rural bodies facing drainage, waste, land use needs); planning and funding gaps in peri-urban zones; political economy of reclassification (fear of losing rural scheme benefits, new municipal taxes).

**POINTS**

→ Census towns must meet all three: population at least 5,000; density at least 400 persons/km2; 75% of the male main working population in non-agricultural work. They may stay under rural local governance but count as urban in Census statistics.

**PRELIMS FODDER**

- Peri-urban area: rural-urban transition zone, also called rurban.
- RGI is an office under the MHA.
- Agglomeration Index was developed for the World Bank World Development Report.
- Other countries: Canada (1,000 people and 400/km2), USA (2,000 housing units or 5,000 people).

**MAINS FODDER**

- Way forward: review the male-only test and thresholds; use grids, satellite mapping and commuting data; clear procedure for statutory recognition with staff and finance; transition funding, including the Sixteenth Finance Commission Urbanisation Premium; coordinate municipal and panchayat plans.
- Line to use: India's cities are growing faster than its definitions; an outdated definition is a governance deficit.
- Keywords: Hidden urbanisation; Census town; Peri-urban belts; Urbanisation Premium

## 1.4.1 Appointment of Election Commissioners

PRELIMS

**What:** The Supreme Court gave a split verdict on whether challenges to the 2023 Act on appointment of the CEC and ECs should go to a Constitution Bench (at least five judges).

**POINTS**

→ The President appoints the CEC and ECs under Article 324(2).

→ ECI is a three-member body (CEC and two ECs). Since 1993 it is multi-member and decides by majority; all ECs have an equal say.

→ A report said two ECs objected to several decisions, questioning the decision-making process.

**MAINS FODDER**
• Keywords: Article 324(2); multi-member Commission; Constitution Bench; Article 143

**PYQ:** 2017 Prelims: ECI is not a five-member body; MHA does not decide the election schedule; ECI resolves disputes on splits/mergers of recognised parties.

## 1.4.2 EVM Totaliser

PRELIMS

**What:** The Supreme Court asked the Union Government to examine whether totalisers can be used for EVM counting to protect voter secrecy.

**POINTS**

→ Now votes are counted polling-station-wise, revealing booth-level voting patterns.

→ A totaliser connects a cluster of EVMs and shows combined candidate-wise results without booth-level results. It protects voter anonymity and reduces intimidation.

→ Rule 59A of the Conduct of Elections Rules, 1961 permits mixing of paper ballots, not EVM votes. Totalisers would need an amendment of the Rules (framed under the RP Act, 1951).

→ ECI proposed totalisers in 2008; Law Commission 255th Report (2015) supported them where intimidation is feared; ECI's recent affidavit opposes them for now for lack of a legal framework.

**MAINS FODDER**
• Keywords: Voter anonymity; Rule 59A; Conduct of Elections Rules 1961

## 1.4.3 Registered Unrecognised Political Parties (RUPPs)

PRELIMS + MAINS

**What:** Six Gujarat-based RUPPs reportedly received Rs 1,700 crore in FY 2023-24, more than the Rs 1,480 crore received by five national parties (excluding BJP).

**Benefits**

→ a free symbol from the free list; income-tax exemption; 20 star campaigners.

**Concerns**

→ only 750 of over 2,800 RUPPs contested the 2024 general election (letter-pad parties); 223% rise in declared income in FY 2022-23 (ADR); delisting is not de-registration; tax evasion and money laundering risk.

**Way forward**

→ automatic de-registration after 10 consecutive years of not contesting (Law Commission 255th report); empower ECI to de-register (ECI 2016 memorandum); periodic verification.

**POINTS**

→ RUPPs are registered with ECI under Section 29A of the RP Act, 1951 but not recognised as State or National parties under the Election Symbols (Reservation and Allotment) Order, 1968.

→ INC vs Institute of Social Welfare (2002): ECI cannot de-register a party except for fraud in registration, being declared unlawful, etc.

**PRELIMS FODDER**
• National party (any one): 6% votes in four States plus 4 Lok Sabha seats; 2% of Lok Sabha seats from at least 3 States; State party status in 4 or more States.
• State party (any one): 6% votes plus 2 seats; 6% in Lok Sabha poll plus 1 seat; 3% of Assembly seats or 3 seats; 1 Lok Sabha seat per 25; 8% votes.

**MAINS FODDER**
• Keywords: Section 29A; letter-pad parties; De-registration; Electoral transparency

## 1.4.4 Use of Regional Languages in High Courts

PRELIMS + MAINS

**What:** The Tamil Nadu Assembly passed a resolution urging the Centre to recognise Tamil, alongside English, as the principal language of the Madras High Court.

**Article 348(1)**

→ proceedings in the Supreme Court and High Courts are in English unless Parliament provides otherwise.

**Article 348(2)**

→ the Governor, with the President's prior consent, may authorise Hindi or another official State language in High Court proceedings (not judgments, decrees and orders).

**POINTS**

→ Section 7, Official Languages Act, 1963: Governor with President's consent may authorise the State language for judgments, decrees and orders, besides English.

→ 1965 Cabinet Committee decision: the Chief Justice of India's consent is sought.

→ Hindi is authorised in Rajasthan (1950), Uttar Pradesh (1969), Madhya Pradesh (1971) and Bihar (1972) High Courts. Proposals for Tamil, Gujarati, Bengali and Kannada did not get CJI consent in 2012.

→ Language of subordinate courts is decided by the State Government.

**MAINS FODDER**

- Keywords: Article 348; Official Languages Act 1963 Section 7

## 1.4.5 Central Bureau of Investigation (CBI) and State consent

PRELIMS + MAINS

**What:** The Bihar Government expanded the CBI's general consent for specified cases involving Central Government employees, Central PSUs and related private persons. Prior State approval is still needed for State Government employees and State-controlled institutions.

**Section 5 DSPE Act**

→ Centre may extend CBI powers to a State. Section 6: ordinarily needs the State's consent.

**POINTS**

→ CBI was set up in 1963 by an executive resolution; it is not a statutory body. Its powers come from the Delhi Special Police Establishment (DSPE) Act, 1946.

→ General consent lets the CBI investigate covered categories without approval in each case; specific consent is case by case.

→ The Supreme Court and High Courts can order a CBI investigation without State consent.

**MAINS FODDER**

- Keywords: General consent; DSPE Act Section 6; federal character

**PYQ:** 2021 Mains: States' power to withhold consent to the CBI is not absolute; explain with reference to India's federal character.

## 1.4.6 Forest Clearance and the Forest Rights Act

PRELIMS + MAINS

**What:** The Ministry of Tribal Affairs clarified that the Forest Rights Act (FRA), 2006 does not itself require 100% Gram Sabha consent for Stage-II forest clearance.

**Gram Sabha role under FRA**

→ verifies claims; free, informed consent for relocation from critical wildlife habitats; protects forests and heritage; can pass a resolution against violators after 60 days' notice to the State Level Monitoring Committee.

**POINTS**

→ Forest clearance under the Forest Conservation Act, 1980 has two stages: Stage-I in-principle approval with conditions (compensatory afforestation, levies); Stage-II final approval.

→ After Stage-II, the State/UT can issue the diversion order only after compliance with other laws, including settlement of rights under the FRA.

→ The Forest (Conservation) Rules, 2022 removed the requirement of Gram Sabha consent before Central approval. The 2023 Rules allow Central approval before settlement of rights; actual diversion needs prior settlement.

→ FRA 2006 (Ministry of Tribal Affairs) recognises rights of forest-dwelling STs and Other Traditional Forest Dwellers: individual rights; community rights (grazing, fishing, PVTG habitat, Community Forest Resource, traditional knowledge); minor forest produce rights. Committees: Sub-Divisional, District and State Level Monitoring.

**MAINS FODDER**

- Keywords: Stage-I and Stage-II clearance; Community Forest Resource rights; Gram Sabha consent

**PYQ:** 2013 Prelims: Gram Sabha initiates the process of determining individual or community forest rights under FRA.

## 1.5.1 Article 142 (quick update)

PRELIMS + MAINS

**What:** The Supreme Court invoked Article 142 to quash FIRs against students in the NEET-UG 2026 protests. Relief did not cover persons with serious criminal antecedents.

**Article 142(1)**

→ SC may pass any decree or order necessary for complete justice in a pending case; enforceable throughout India. Extraordinary and discretionary; available only to the SC.

**Article 142(2)**

→ secure attendance, order production of documents, investigate or punish contempt.

**MAINS FODDER**

- Keywords: Complete justice; Article 142

**PYQ:** 2019 Prelims: Article 142 powers are not constrained by laws made by Parliament.

## 1.5.2 New Guidelines for Film Certification, 2026

PRELIMS + MAINS

**What:** The I&B Ministry notified new film certification guidelines under the Cinematograph Act, 1952, superseding the 1991 notification.

**Provisions**

→ no glorification or justification of violence; no abuse or ridicule of persons with disabilities; sexual violence against women to be avoided.

**POINTS**

→ CBFC (under the 1952 Act) certifies films.

→ Age-based certification retained: U/A 7+, U/A 13+, U/A 16+. Others: A (adults only), Specialised (restricted to a profession or class).

**MAINS FODDER**

- Keywords: CBFC; U/A categories; Article 19(1)(a) and 19(2)

**PYQ:** 2014 Mains: Freedom of speech and expression, hate speech, and why films are on a different plane.

## 1.5.3 Tulu language

PRELIMS

**What:** Karnataka Cabinet gave Tulu the status of second additional administrative language for Dakshina Kannada and Udupi.

**Article 345** → a State legislature may adopt one or more languages in use in the State for official purposes.

**POINTS**

→ Tulu is not among the 22 languages in the Eighth Schedule.

→ Dravidian family language; historic Tigalari script (from medieval Grantha); now written in Kannada script; core region Tulunadu (coastal Karnataka and Kasaragod in Kerala).

**MAINS FODDER**

- Keywords: Article 345; Eighth Schedule

## 1.5.4 Nautor Land (Ladakh) PRELIMS

**What:** The Ladakh LG approved the Ladakh Autonomous Hill Development Councils (Nautor Regularisation) Rules, 2026 covering over 60,000 acres.

**Nautor land** → government-owned barren or waste land historically allotted for cultivation without full ownership rights.

**POINTS** → LAHDCs allot and regulate nautor land under the LAHDC Act, 1997.

**MAINS FODDER**

- Keywords: Nautor; LAHDC

## 1.5.5 1951 baseline for NRC in Manipur PRELIMS

**What:** The Manipur government told the Assembly that 1951 would be the proposed baseline for updating the NRC.

**POINTS**

→ An NRC/NRIC needs the Union Government's authorisation. Section 14A of the Citizenship Act, 1955 empowers the Centre to register citizens and maintain the NRIC (Citizenship (Registration of Citizens and Issue of National Identity Cards) Rules).

→ Census (Census Act, 1948; Union List) counts the population. NPR records all usual residents, citizens and non-citizens. NRC contains only citizens after verification.

**MAINS FODDER**

- Keywords: Section 14A; NRIC; NPR

## 4.2 Maternity rights: Rakhi Bisht v. Union of India (2026) PRELIMS + MAINS

**What:** Delhi High Court held that availing maternity leave cannot diminish a woman's professional status or career prospects; cited Articles 14, 15, 21, 42 and the Code on Social Security, 2020.

**Principles** → return to same or substantially equivalent role (pay, status, responsibilities, authority, promotion); protection covers duties, reporting, appraisal; explain reasons and alternatives before rejoining if original role is unavailable; no retaliation; Court noted a gap in post-maternity reintegration and told the Centre to frame safeguards within six months.

**Leave** → 26 weeks for fewer than two surviving children (up to 8 weeks before delivery); 12 weeks for two or more (up to 6 weeks before); adoptive and commissioning mothers 12 weeks; crèche for 50+ employees with four visits daily.

**Challenges** → Time Use Survey 2024 – 41% of women (15–59) did unpaid caregiving vs 21.4% of men; women 140 min/day vs men 74; employer-cost bias; weak reintegration; informal-sector exclusion (PLFS 2025: 63.1% of female non-agricultural workers in proprietary/ partnership enterprises); weak crèches and enforcement.

**Way forward** → shared parental leave (ILO C156); socialise costs (ILO C183); phased return, flexible work, lactation support; PMMVY; strengthen enforcement.

**Connecting news** → Tamil Nadu announced 365 days of maternity leave for state employees for a third child (up from 12 weeks). Central Civil Services (Leave) Rules 1972 give male employees 15 days paternity leave; no statutory private-sector paternity leave. Hamsaanandini Nanduri (2026) urged recognising paternity leave as social security.

**POINTS** → Code on Social Security 2020 subsumed the Maternity Benefit Act 1961. Applies to factories, mines, plantations and shops/establishments with 10+ employees; eligibility 80 days of work in preceding 12 months.

**PRELIMS FODDER**

- CEDAW 1979 Article 11: non-discrimination in employment. ILO C183 (2000) Maternity Protection; ILO C156 (1981) Workers with Family Responsibilities; India has not ratified either.
- Cases: MCD v. Female Workers (Muster Roll) 2000; Deepika Singh v. CAT 2022; Hamsaanandini Nanduri v. Union of India 2026 (removed three-month adoption limit).

**MAINS FODDER**

- Keywords: motherhood penalty, substantive equality, career continuity, reproductive autonomy, care redistribution, workplace reintegration.

**PYQ:** 2019 Prelims: Maternity Benefit (Amendment) Act 2017 provisions (crèche visits, leave for two children).